

Tamil Nadu Recognised Private Schools (Regulation) Rules, 1974

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State of Tamilnadu- Act

Tamil Nadu Recognised Private Schools (Regulation) Rules, 1974

TAMILNADU

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Tamil Nadu Recognised Private Schools (Regulation) Rules, 1974

Rule TAMIL-NADU-RECOGNISED-PRIVATE-SCHOOLS-REGULATION-RULES-1974 of 1974

Published on 29 November 1974

Commenced on 29 November 1974

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Tamil Nadu Recognised Private Schools (Regulation) Rules, 1974

Published vide Notification No. G.O. Ms. No. 1966, Education, dated 29.11.1974

No. G.O. Ms. No. 1966. - In exercise of the powers conferred by section 56 of the Tamil Nadu Recognised Private Schools (Regulation) Act, 1973 (Tamil Nadu Act 29 of 1974), the Governor of Tamil Nadu hereby makes the following rules: -

1.

Short title and commencement.

(1)

These rules may be called the Tamil Nadu Recognised Private Schools (Regulation) Rules, 1974.

(2)

They shall come into force with effect on and from the 1st December 1974.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Tamil Nadu Recognised Private Schools (Regulation) Act, 1973 (Tamil Nadu Act 29 of 1974);

(b)

"District Educational Officer" means in relation to the Anglo-Indian Schools and the Girls' Schools, the Inspector of Anglo-Indian Schools, or the Inspectress of Girls' Schools, as the case may be;

(c)

"Teacher" shall include a Headmaster.

3.

Stages of education.

(1)

The following shall be the various stages of education and categories of schools: -

(a)

Pre-primary. - The Pre-primary schools shall be classified as pre-basic Nursery, Kindergarten and Montessori Schools;

(b)

Primary. - The Primary schools shall consist of Standards I to V;

(c)

Middle Schools. - The Middle Schools shall consist of Standards I to VIII or Standards VI to VIII;

(d)

[(i) High Schools. - The High Schools shall consist of Standards I to X, or VI to X or IX to X;

[Clause d(i) and (ii) were substituted by G.O. Ms. No. 1502, Education, dated the 23rd September 1988.]

(ii)

Higher Secondary Schools. -The Higher Secondary Schools shall consist of Standards I to XII, VI to XII, or IX to XII.]

Explanation. - The Anglo-Indian Schools, the Oriental Schools and the Special Schools shall be included in the respective categories in (a) to (d) above.

(e)

Teachers' Training Institute.

(2)

The pattern and duration of courses, curricular syllabi, courses of instruction, time tables and text books of private schools, shall be regulated by the Government by issue of orders, from time to time.

4.

Power to grant permission.

- The competent authorities to grant permission to open a private school or to upgrade an existing school or to open higher standards or additional sections in an existing school shall be the following, namely: -

Schools

Power to grant permission to open a new school or to upgrade an existing school

Power to grant permission to open higher standard or additional section in an existing school

(1)

(2)

(3)

Pre-primary, Primary and Middle Schools.

Chief Educational Officer.

District Educational Officer.

High Schools[xxx]

[These expression 'Teachers Training Institutes' was omitted by G.O. Ms. No. 1141, Education. Science and Technology (UI). dated the 6th December 1994.]

Joint Director of School Education (Secondary Education).

Chief Educational Officer.

[Teacher's Training Institute

[Added by G.O. Ms. No. 1141, Education. Science and Technology (111), dated (he 6th December 1994.)

Deputy Director (Teachers Education)

Deputy Director (Teachers Education)]

Higher Secondary Schools

Joint Director of School Education (Higher Secondary)

Chief Educational Officer.

5.

Application for permission.

(1)

Every application to open a new school or to open higher standards or additional section in an existing school shall be, in Form I in respect of Pre-primary, Primary and Middle School, and in Form I-A in respect of High Schools and in Form I-B for upgrading of High School into Higher Secondary School and shall be addressed to the competent authorities specified in rule 4. Such application shall be accompanied by a copy of the constitution of the educational agency and a challan for the remittance of the fees prescribed under sub-rule (2) below. The application for the opening of new schools or higher standard shall be in triplicate and shall reach the competent authority before the 31st December of the year preceding the school year in which the new school or higher standards is proposed to be opened and the application for opening of additional sections in an existing school shall be in triplicate and shall reach the competent authority before the 30th June of the school year.

(2)

The fees to be paid in respect of every application to open a new school or to upgrade an existing school shall be as follows, namely: -

(1)

Pre-primary School

Rs. 25

(2)

Primary School

Rs. 50

(3)

Middle School

Rs. 75

(4)

Teachers' Training Institute

Rs. 100

(5)

High School

Rs. 100

(6)

Higher Secondary School

Rs. 100

(3)

The fees shall be credited to the Government under the Head of Account "0202-01-General-Education 202-Secondary Education-AB-Other Receipts (5) Other Receipts".

(4)

Applications not accompanied by a challan for the remittance of the prescribed fee and applications received after the due date are liable to be rejected.

(5)

The educational agency of every private school in existence on the date of commencement of the Act shall, before the expiry of six months from that date, send to the authorities empowered to grant permission to open a new school as specified in rule 4, a statement in Form II.

The educational agency of every Higher Secondary School which is a private school and in existence on the date of publication of the Tamil Nadu Recognised Private Schools (Regulation) Amendment Act, 1987 (Tamil Nadu Act 39 of 1987) in the Tamil Nadu Government Gazette, shall before the expiry of six months from that date, make an application to the competent authority for permission to continue to run such school as specified in rule 4, in a statement in Form II-A.

(6)
No fee shall be leviable in respect of application for opening an additional section in a school.

(7)
A fee of Rs. 50 shall be levied in respect of all Higher Secondary Schools which applies for the introduction of new groups or change of groups.

6.
Grant of permission.

(1)
Permission to open a new school or to upgrade an existing school or to open higher standard or additional section in an existing school shall be granted, only if the following conditions are satisfied, namely: -

(a)
There is need for the opening of a new school or to upgrade an existing school or to open higher standard or additional section in an existing school;

(b)
The amenities for the pupils and the teachers are adequate;

(c)
The equipment, buildings, laboratory, library, play-ground and other facilities for imparting instruction are adequate and according to the scales or requirements prescribed by Government, from time to time;

(d)
The grant of permission under this rule shall be subject to the availability of the funds from the Government with reference to its budgetary provisions;

(e)
The extent of playground adequate with reference to the strength of the pupils;

(f)
[Structural stability certificate from the Engineers of Public Works Department/Chartered Engineers (from the Engineers in the panel of qualified and registered Engineers maintained by the District Collectors) in accordance with the Tamil Nadu Public Buildings (Licensing) Act, 1965 (Tamil Nadu Act 13 of 1965) is obtained;]

[Added by G.O. Ms. No. 123, School Education (XI) Department, dated the 14th September 2004.]

(g)
Adequate sanitary facilities separately for teachers and pupils (boys/ girls separately) and a certificate to that effect is obtained from the local Health Authority;

(h)
No Objection Certificate from the Station Officer, Fire and Rescue Services department, in the area, where the school is situated is obtained:

Provided that no thatched structure shall be in the school premises.

(2)
(a)
[The Joint Director of School Education (Secondary Education) or the Deputy Director (Teacher Education)]
[Substituted by G.O. Ms. No. 1141, Education, Science and Technology (UI), dated the 6th December 1994.]

or the Chief Educational Officer or the District Educational Officer as specified in the rule 4 may, after considering the particulars contained in the application, may grant or refuse the permission and his decision shall be communicated within four months from the date of receipt of the application. If permission is to be refused, the educational agency concerned shall be given an opportunity to make its representation.

(b)
Where, the permission is refused, the competent authorities shall refund one-half of the amount of the fee, remitted by the applicant under sub-rule (2) of rule 5.

7.

Approval of transfer of permission.

(1)

The competent authorities to approve any change in the constitution of the educational agency or to approve the transfer of the management of any private school shall be the Chief Educational Officer concerned, in respect of Pre-primary, Primary and Middle Schools and the Joint Director of School Education (Secondary Education) in respect of High Schools and the Deputy Director (Teachers Education) in respect of Teachers Training Institutes and the Joint Director of School Education (Higher Secondary) in respect of Higher Secondary Schools.

(2)

The application for approval of a change in the constitution of the educational agency shall be in Form III.

(3)

The application for approval of transfer of the management of any private school or for approval of such transfer where the transfer was made without approval having been obtained for such transfer, shall be in Form IV.

8.

Minority school to send statement.

(1)

Every minority school to be established and administered after the date of commencement of the Act shall send a statement in Form V within three months from the date of the opening of the school to the Chief Educational Officer, in the case of Pre-primary, Primary and Middle Schools and to the Joint, Director of School Education (Secondary) in the case of High Schools and Teachers Training Institutes.

(2)

[Every minority school other than Teachers' Training Institute to be established and administered after the date of the commencement of the Act shall, send to the competent authorities referred to in sub-rule (1) above and every minority Teachers' Training Institutes to be established and administered after the date of the commencement of the Act shall send to the Deputy Director (Teacher Education), a statement in Form V within three months from the date of the opening of the school or Teachers' Training Institute, as the case may be.]

[Substituted by G.O. Ms. No. 1141, Education, Science and Technology (111), dated the 6th December 1994.]

9.

Recognition.

(1)

The educational agency of a private school including a minority school shall apply in Form VI for recognition of the school or for opening of a higher standard or additional section to the competent authorities specified in rule 29 in respect of section 11. The application shall be made within three months from the date of opening of the school or higher standard or additional section. Where a temporary recognition is accorded, application for the continuance shall be made not later than three months prior to the expiry of the period of the temporary recognition.

A sum of Rs. 200 shall be remitted into the Treasury and the challan forwarded with the application for recognition or renewal of recognition of Higher Secondary Schools, as the case may be, till permanent recognition is granted.

(2)

The following conditions shall be satisfied for the purpose of recognition: -

(a)

[The educational agency shall, -

[Substituted by G.O. Ms. No. 123, School Education (X2) Department, dated the 14th September 2004.]

(i)

produce a licence permitting the use of the school building as public building under the Tamil Nadu Public Buildings (Licensing) Act, 1965 (Tamil Nadu Act 13 of 1965);

(ii)

produce structural stability certificate from the Engineers of Public Works Department/Chartered Engineers (from the Engineers in the panel of qualified and registered Engineers maintained by the District Collectors) in accordance with the Tamil Nadu Public Buildings (Licensing) Act, 1965 (Tamil Nadu Act 13 of 1965);

(iii)

provide adequate sanitary facilities separately for teachers and pupils (boys/girls separately) and produce a certificate to

that effect obtained from the local Health Authority;

(iv)

produce a No Objection Certificate from the Station Officer, Fire and Rescue Services Department, in the area where the school is situated:

Provided that no thatched structure shall be in the school premises.]

(b)

Where the licence has been issued for a specified period, a fresh licence shall be produced before the expiry of the period of validity of the said licence.

(c)

(i)

The educational agency of a private school including a minority school shall create an endowment as follows, namely: -
Rs.

(a)

Pre-primary School

10,000

Existing Pre-primary School to be upgraded as

Primary School

15,000

(b)

Primary School

25,000

Existing Primary School to be upgraded as Middle

School

25,000

(c)

Middle School

50,000

Existing Middle School to be upgraded as High

School

50,000

(d)

Teachers' Training Institute

1,00,000

(e)

High Schools

1,00,000

(f)

High School to be upgraded as Higher Secondary

Schools

25,000

Provided that, in respect of an existing school to be upgraded where no endowment had already been created, the amount of endowment payable by such school, shall be the same as for opening a new school.

The endowment shall be created in the name of the school in the shape of Government securities like National Defence Certificates or National Plan Certificates or in fixed deposits for a period of not less than seven years with Tamil Nadu Industrial Investment Corporation Limited, [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or the Tamil Nadu Industrial Co-operative Bank Limited or the Tamil Nadu State Co-operative Bank or the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Central Co-operative Bank, [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or in any corresponding new Bank as defined in the Banking Companies (Acquisition and Transfer of Undertakings Act,

1970) (Central Act 5 of 1970). Fifty per cent of such endowment amount shall be created before the school is opened. The remaining amount shall be created in two equal annual instalments in the case of pre-primary and primary schools and in five equal annual instalments, in the case of middle and high schools. In the case of upgrading the existing High School as Higher Secondary School, the endowment amount of Rupees Twenty-five thousand shall be paid in three annual instalments, the first instalment being Rupees fifteen thousand, the remaining amount shall be paid in two equal instalments. Trust or society or corporate body which run more than one private school shall have the option to create fifty per cent of the endowment in cash and fifty per cent in the form of immovable property other than school building. The immovable property so endowed shall be unencumbered and income yielding. It shall be endowed in the name of the school and conveyed to the school through proper legal document. [The immovable property endowed shall not be sold, mortgaged, exchanged or gifted or alienated in respect of schools without the prior approval of the Director of School Education and in respect of the Teacher Training Institutes without the prior approval of the Director of Teacher Education, Research and Training]

[The above sentence was substituted by C.O. Ms. No. 1141, Education, Science and Technology (UI), dated the 6th December 1994.]

. The entire income derived from the endowed immovable property shall be brought to the general accounts of the school.

(ii)

In addition to the creation of the endowment referred to above, the educational agency shall also deposit in the Tamil Nadu State Co-operative Bank Limited or in the Tamil Nadu Industrial Co-operative Bank Limited, or in [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Central Co-operative Bank Limited, or in any corresponding new Bank as defined in the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 (Central Act 5 of 1970) in the name of the school, a sum equivalent to a minimum of one month's salary of the staff employed in such school, to serve as a working capital of that school, which may be drawn for the disbursement of salary to the members of the staff, on the due date in the event of any delay in the sanction of grant by the Education Department.

(d)

If the educational agency pays more than the scales and rates ordered by Government, such excess shall be met by the educational agency from its own funds and shall not be debited to the school funds and, for purposes of grants, such higher scale or rate shall not be taken into consideration.

(e)

The educational agency shall not collect fees or donations compulsorily other than those permitted by the competent authority under rule 23 from pupils or parents or any other persons for any purpose whatsoever.

(f)

The educational agency shall carry out the instructions issued by the Government, from time to time, in the public interest to ensure that the admission in the schools run by them, of pupils belonging to the socially and educationally backward classes of citizen and to safeguard the interest of linguistic minorities.

(g)

The educational agency shall carry out the instructions issued by the Director of School Education or other officers subordinate to him with a view to maintain the academic standards and to safeguard the interest of teachers and the pupils including the linguistic minorities.

(h)

The educational agency should have fulfilled all the conditions stipulated by the competent authority at the time of according permission to open the school or the additional standard or section.

(i)

The school shall be situated in a building which is accessible to all castes and communities.

(j)

The premises of the school or subsidiary building appertaining to it or a playground or a vacant site belonging to the school, whether adjacent to or remote from it, shall ordinarily be used for the purposes of conducting the school or for functions conducted by such schools or for authorised examinations or for other purposes specifically permitted by the Chief Educational Officer.

(ii)

[The use of the building and other properties including the playground of any recognised private school for conducting drill or training with or without arms by persons who are not students or members of the staff of the school shall not be permitted by the management under any circumstances:

[Clause (jj) inserted by G. O. Ms. No. 1175, Education, dated the 3rd September 1984.]

Provided further that non-observance of the condition laid down in clause (jj) above will entail the withdrawal of recognition, and aid as per sub-section (1) of section 12 of the Tamil Nadu Recognised Private Schools (Regulation) Act, 1973 (Tamil Nadu Act 29 of 1974).]

(k)

The School Committee shall not appoint any teacher whose certificate has been suspended or cancelled or who has been declared unfit to be a teacher in recognised schools or who has been convicted for offences involving moral turpitude.

(l)

The additional factors given in section 11-A of the Act shall also be taken into account by the competent authority before passing orders on an application for recognition under section 11.

[(2-A) The conditions specified in Annexure VI shall also be satisfied for the purpose of recognition of a Teachers' Training Institute, in addition to the conditions specified in sub-rule (2).]

[Sub-rule (2-A) was inserted by G.O. Ms. No. 535, Education (UI). dated the 17th May 1989.]

(3)

The certificate of recognition of the private school shall be granted within a period of two months from the date of receipt of application.

(4)

It shall be open to the competent authority to reject the application for recognition if he considers that any one of the conditions under sub-rule (2) has not-been satisfied. The order rejecting the application shall specify the grounds for rejection and shall be communicated within a period of two months from the date of receipt of the application.

(5)

[No Institute which does not enjoy recognition shall be permitted to present student for writing public examination conducted by the Director of Government Examinations.]

[Sub-rule (5) was added by G.O. Ms. No. 441, Education (UI). dated the 12th April 1991.]

10.

Withdrawal of recognition.

(1)

The competent authorities for withdrawing recognition shall be the following namely: -

Schools

Competent authority

Pre-primary, Primary and Middle schools

Chief Educational Officer.

High Schools[xxx]

[These expression 'Teachers Training Institutes' was omitted by G.O. Ms. No. 1141. Education. Science and Technology (Ui). dated the 6th December 1994.]

Joint Director of School Education

(Secondary Education)

[Teachers' Training Institutes

[Added by G.O. Ms. No 1141. Education. Science and Technology (UI). dated the 6th December 1994.]

Deputy Director of Teacher Education]

Higher Secondary School

Joint Director of School Education (Higher

Secondary)

(2)

The recognition shall be withdrawn permanently or for any specified period, by the competent authority, if the educational agency or the School Committee or the Secretary of the School Committee violates any one of the conditions stipulated for recognition under rule 9.

11.

Payment of grant.

(1)

Recognised Private Schools may be paid grants from State funds directly or through Panchayat Unions. Such payment of grants shall be subject to Government orders and instructions issued, from time to time:

Provided that, schools whose recognition have been withdrawn shall not be entitled to any grant for the period of such withdrawal of recognition.

(2)

The authority competent to sanction grant shall be the District Educational Officer.

(3)

The rate at which and the purpose for which the grant may be paid shall be as specified in Annexure I

(4)

The Joint Director of School Education (Elementary Education) in respect of Pre-primary, Primary and Middle Schools and the Joint Director of School Education (Secondary Education) in respect of High Schools [and Deputy Director (Teacher Education) in respect of Teachers' Training Institutes]

[The expression urns substituted by G. O. Ms. No. 1141, Education, Science and Technology (UI), dated the 6th December 1994.]

, and the Joint Director of School Education (Higher Secondary) in respect of Higher Secondary Schools shall withhold, permanently or for any specified period, the payment of grant, if any, of the conditions specified in rule 9 are contravened or not complied with.

(5)

Notwithstanding anything contained in the Act or in any other law for the time being in force or in any decree, order or direction of any Court or other authority -

(i)

no private school shall, only on the ground of having been granted recognition under the Act, be entitled to any grant or other financial assistance, from the Government;

(ii)

the Government may, subject to -

(a)

the availability of funds;

(b)

the norms and conditions specified in the Grant-in-Aid Code of Tamil Nadu Education Department.

(c)

the condition that every private school receiving any grant or financial assistance from the Government levies and collects from the pupils only such fee, charges or other payment as may be specified by the competent authority, which shall not be in excess of the fee, charge or other payment levied and collected from the pupils studying in the schools or institutions established and administered or maintained, by the State Government, or any local authority in the locality: -

(d)

the rules, orders and notifications issued by the Government from time to time; and

(e)

such other conditions as may be prescribed by Government to the private school grant or other financial assistance at such rate and for such purposes as may be prescribed.

12.

Constitution of the School Committee.

(1)

The educational agency of every private school shall constitute a school committee.

(2)

The term of office of the Committee shall be three years. Members of the Committee shall be eligible for renomination.

(3)

The Schools Committee shall consist of not more than the following number of members: -

Members

(i) Representatives of the Educational agency
who shall be nominated by such educational agency:
Provided that the employees of the school shall
not be nominated under this category.

6

(ii) Headmaster of, the School (Ex-officio)

1

(iii) Senior most teachers of the school

3

(iv) Parent-Teacher Association nominee

1

(v) Senior-most non teaching staff (if
available)

1

Explanation I. - Non-teaching staff shall; mean the ministerial staff belonging to group "C" and above.

Explanation II. - For the purpose of this rule the seniority shall be determined with reference to the total service rendered
by teachers or non teaching staff as the case may be in, any recognised school or schools:

Provided that the number of representative of teachers shall not be reduced on account of any decrease in the strength
of teachers during the three years term of the committee:

Provided further that the educational agency shall increase the representation for the teachers on the above scale, if the
strength of the teachers is increased. The teachers so nominated shall be a member of the committee for the residual
period of the tenure of the committee and shall be eligible for renomination:

Provided further when a vacancy of teachers representatives in the committee arises, the next senior-most teacher shall
be nominated to the committee. However there shall be no change in the membership of the teacher representative
during the tenure of the committee on account of the appointment of another senior teacher.

[(3-A) When a vacancy of representatives of teaching and non teaching staff arises, the vacancy shall be filled in on the
basis of seniority.]

[Sub-rule (3-A) tuns substituted by G.O.Ms. No. 1133, Education, dated the 26th August 1989.]

(4)

The educational agency shall nominate one of the representatives in the committee as the President.

If the educational agency intends to change the President, within the period of three years, it shall do so only with the
prior approval of the District Educational Officer.

(5)

The following persons shall not be eligible to become members of the Committee: -

(a)

Minors;

(b)

Mentally unsound persons;

(c)

Persons convicted for criminal offence involving moral turpitude;

(d)

Insolvents;

(e)

A person who has been found responsible for any serious irregularity, as a result of enquiry by the Education
Department.

13.

Secretary of the School Committee.

(1)

The educational agency shall nominate one of its representatives as Secretary of the School Committee:

Provided that, it shall be open to the educational agency, to nominate the Headmaster as Secretary.

(2)

The term of office of the Secretary shall, ordinarily, be three years. However, he shall be eligible for renomination as Secretary for subsequent terms. If the educational agency intends to change the Secretary within the period of three years, it shall do so only with the prior permission of the District Educational Officer.

(3)

The Secretary of the School Committee shall function for and on behalf of the School Committee and the educational agency.

(4)

The Secretary shall act on the basis of the resolution passed at the meetings of the School Committee.

(5)

The Secretary shall not interfere in the internal administration of the school like admissions, examinations, promotions of pupils and other academic matters which shall be the exclusive responsibility of the Headmaster.

(6)

The Secretary shall be responsible for the correct maintenance of accounts and proper administration of school accounts relating to special fees for which the Headmaster shall be responsible.

14.

Meetings of the School Committee.

(1)

The meetings of the School Committee shall be convened by the Secretary of the School Committee with the approval of the President of the School Committee.

(2)

No meeting of the School Committee shall be conducted unless -

(a)

at least seven days clear notice in writing has been given to the members of the Committee;

(b)

at least fifty per cent of the total members of the Committee are present.

Explanation. -If the total number of the members of the Committee is an odd number, the next higher even number shall be taken for the purpose of this sub-rule.

(3)

A copy of the minutes shall be communicated by the Secretary of the School Committee to the Deputy Inspector of Schools, in respect of a Pre-primary, a Primary or a Middle School, to the District Educational Officer, in respect of a High School, or a Teachers' Training Institute and to the Chief Educational Officer in respect of a Higher Secondary School within fifteen days from the date of such meeting.

15.

Qualifications, conditions of service of teachers and other persons.

(1)

The number of teachers and other persons employed in a private school shall not exceed the number of posts sanctioned by the Director of School Education, from time to time, with reference to the academic requirements, teacher-pupil ratio and overall financial considerations.

(2)

(i)

The School Committee of every private school shall enter into an agreement with the teacher or other person in Form VII-A or VII-B if the appointment is for a period exceeding three months.

[(i-a) The School Committee of every private school shall enter into an agreement with the person appointed as Junior Grade Teacher in Form VII-C.]

[Inserted by G.O. Ms. No. 125, School Education, dated the 12th November 2003.]

(ii)

Three copies of the agreement shall be executed, one copy shall be furnished to the teacher or other person concerned, the other copy shall be retained by the School Committee and the third copy shall be forwarded to the District Educational Officer.

(3)

In a regular vacancy, a fully qualified candidate shall be appointed only on a regular basis. However, in a temporary

vacancy, i.e., leave vacancy, deputation for training or suspension of the teacher's certificate, a teacher or other person may be appointed for a specified period. In such cases, the agreement to be executed shall be in Form VII-B

(4)

(i)

Promotion shall be made on grounds of merit and ability, seniority being considered only when merit and ability are approximately equal.

(ii)

[Appointments to the various categories of teachers shall be made by the following methods: -

[Substituted by G.O. Ms. No. 1376, Education, dated the 6th July 1981.]

(i)

Promotion among the qualified teachers in that school.

(ii)

If no qualified and suitable candidate is available by method (i) above, -

(a)

Appointment of other persons employed in that school, provided they are fully qualified to hold the post of teachers.

(b)

Appointment of teachers from any other school.

(c)

Direct recruitment.

In the case of appointment from any other school or by direct recruitment the School Committee shall obtain the prior permission of the District Educational Officer in respect of Pre-primary, Primary and Middle School and that of the Chief Educational Officer in respect of High Schools and Higher Secondary Schools, Teacher Training Institutions setting out the reasons for such appointment. In respect of corporate body running more than one school, the schools under that body shall be treated as one unit for purpose of this rule.

(d)

Appointment to the post of Headmaster of Higher Secondary School shall be made by the method specified in clause (ii) either from the category of Headmasters of High Schools or Teachers' Training Institutes or from the category of Post-Graduate Assistants in academic subjects or Post-Graduate Assistants in Languages provided they possess the prescribed qualifications.]

(4-A) Any person employed in the institution specified in column (1) of the Table below, aggrieved by an order issued under sub-rule (4) may prefer an appeal to the authority specified in the corresponding entry in column (2) thereof: -

Institution

Authority

(1)

(2)

Pre-primary, Primary or Middle Schools

Chief Educational Officer.

High School or Higher Secondary School (in

respect of a person other than Headmaster) Post-Graduate

Assistant (both Academic and Languages) or Physical Director.

Joint Director of School Education (Secondary

Education)

Teachers' Training Institutes

Deputy Director (Teacher Education)

Higher Secondary School (in respect of

Headmaster Post-Graduate Assistant (both Academic and Languages)

or Physical Director.

Joint Director of School Education (Higher

Secondary)

(5)

A service register shall be maintained for every teacher or other person, showing among others, the date of

appointment, the scale of pay on which he was appointed, the increments given, from time to time, the leave to his credit and the leave granted and other relevant entries like awards and punishments.

(6)

[The teacher and other persons employed in a private school shall possess the qualifications specified in Annexure V.]

[Added by G.O. Ms. No. 1118, Education, dated the 25th June 1975.]

[(6-A) The person appointed as Junior Grade Teacher in a private school shall possess the qualification specified in Annexure V-A.]

[Inserted by G.O. Ms. No. 125, School Education (X2), dated the 12th November 2003.]

(7)

[Every private school, not being a minority school, shall reserve 18 per cent of the vacancies in teaching as well as non-teaching staff candidates belonging to Scheduled Castes and Scheduled Tribes.]

[Added by G.O.Ms. No. 1896, Education, dated the 21st October 1978.]

(8)

[Every private school, not being a minority school, shall reserve 50 per cent of the vacancies in teaching and as well as non-teaching side for the candidates belonging to Backward Classes.

(9)

[(i) The claims of the candidates belonging to Backward Classes, Scheduled Castes and Scheduled Tribes shall also be considered for the remaining 32 per cent of unreserved vacancies which are filled on the basis of merit. Where a candidate belonging to Backward Classes, Scheduled Castes or Scheduled Tribes is selected on the basis of merit in the said 32 percentage of unreserved vacancies, the number of percentage reserved for Backward Classes, Scheduled Castes and Scheduled Tribes, as the case may be, shall not in any way be affected.]

[Sub-rules (8) and (9) of rule 15 were added by G.O. Ms. No. 1371, Education, dated the 22nd July 1980.]

(ii)

If a qualified and suitable candidate belonging to any of the Scheduled Castes and Scheduled Tribes or Backward Classes is not available for selection for appointment in the turn allotted for them in the cycle, the turn so allotted to the Backward Classes shall lapse and the vacancy shall be filled by the next turn in the order of rotation. But the turn so reserved for Scheduled Castes and Scheduled Tribes shall not lapse and the number of candidates to be selected in that recruitment shall be reduced by the number of Scheduled Castes and Scheduled Tribes candidates not available for selection against the turn reserved for them, the unfilled vacancies reserved for Scheduled Castes and Scheduled Tribes shall be carried over to the next recruitment and selection for appointment to that post in the next recruitment shall be made first for the carried over turn and then the normal rotation shall be followed. If qualified Scheduled Castes or Scheduled Tribes candidates are not available even then the carried over turn shall lapse and the vacancy shall be filled by the next turn in the order of rotation.

15A.

[Probation.

[Rule 15A was inserted by G.O. Ms. No. 2234, Education, dated the 3rd December 1979.]

- Every person appointed to a category shall, from the date on which he joins duty, be on probation for a total period of two years on duty within a continuous period of three years:

Provided that persons who had already commenced their probation in aided educational institutions prior to the 2nd May 1977, shall however, be required to complete initial probation for one year and subsequent probation in the case of those who migrate to another aided school, be on probation for one more year.]

16.

Teachers and other persons employed in private schools to be governed by Code of Conduct.

(1)

The teachers and other persons employed in private school shall be governed by the code of conduct as specified in Annexure II.

(2)

A teacher or other person employed in a private school shall be liable to disciplinary action and punishment, if he violates any provision of the Code of Conduct which may include, dismissal or removal or termination of service or reduction in rank.

(3)

Violation of any one of the standards of conduct defined by the school Committee shall render the teacher or the other person liable to suitable disciplinary action and punishment which shall not, however, include dismissal, removal, termination of service or reduction in rank.

17.

Dismissal, removal or reduction in rank or suspension of teacher or other persons employed in private school.

(1)

The competent authorities to accord prior approval for the dismissal, removal or reduction in rank of a teacher or other person employed in any private school, shall be the District Educational Officer in respect of teacher or other person employed in Pre-primary, Primary and Middle Schools and the Chief Educational Officer in respect of teacher or other person employed in High Schools, Higher Secondary Schools and Teachers' Training Institutes.

(2)

(i)

Whenever a teacher or other person employed in a private school is kept under suspension, such suspension shall, immediately on the date of issue of the suspension order, be intimated by the Secretary of the school committee to the District Educational Officer concerned along with a copy of the suspension order.

(ii)

On receipt of intimation regarding the suspension of a teacher or other person as mentioned in clause (i) above, the District Educational Officer concerned shall make payment of subsistence allowance to the teacher or other person who is placed under suspension, every month from the date of suspension for not more than two months at half the rate of pay which he was drawing at the time of suspension and in addition the dearness allowance, if admissible, on the basis of such pay.

(iii)

Whenever the competent authority has extended the period of suspension of a teacher or other person under the proviso to clause (b) of sub-section (3) of section 22 of the Act, he shall intimate such extension of suspension to the District Educational Officer concerned. On receipt of such intimation, the District Educational Officer concerned shall make payment of subsistence allowance to the teacher or other person who is placed under suspension for a further period not exceeding two months at half the rate of pay which he was drawing at the time of suspension and in addition the dearness allowance, if admissible, on the basis of such pay.

(iv)

The District Educational Officer concerned shall send an intimation regarding the payment of the subsistence allowance under clauses (ii) and (iii) above to a teacher or other person who is placed under suspension to the Secretary of the school committee.

(v)

The payment of subsistence allowance shall be limited to maximum of four months in all.

(3)

(i)

Where after enquiry, including the appeal, a suspension is found to be not justified, the management shall remit the amount of subsistence allowance paid to the teacher or other person, employed in that private school to the Government in one lumpsum under the appropriate head of account. The educational agency shall, however, pay such teacher or other person the full pay and allowances he would have drawn but for his suspension less the amount of subsistence allowance already paid to the teacher or other person for the suspension period from the funds of the management without any claim from grant.

(ii)

[Where a substitute is appointed in the place of a teacher or other person employed in a private school kept under suspension, the management shall not be entitled to any grant in respect of such a substitute.]

[G.O. Ms. No. 748, Education, dated the 2nd May 1981.]

(iii)

[Where the appellate authority has decided against the imposition of the penalty of dismissal or removal from service or placement under suspension of a teacher or other person employed in a private school by the management of that school, the management of every private school, not being a minority school, shall implement the order of the Appellate Authority and re-instate the teachers or other persons with all back wages for the period of dismissal or suspension or

removal within one month from the date of order of the Appellate Authority, failing which, apart from resumption of the post, recognition shall be withdrawn.]

[Clause (iii) was inserted by G.O. Ms. No. 1535, Education, dated the 13th September 1986.]

17A.

[Educational agencies not to obtain compulsorily resignation letter either at the time of appointment or subsequently from the employees in their school.

[Rule 17(A) was inserted by G.O. Ms. No. 586, Education, dated the 2nd April 1981.]

(1)

Whenever a teacher or other person employed in a private school, tenders his resignation of appointment, he shall inform the fact of his resignation in writing by registered post with acknowledgement due to the District Educational Officer, Inspectress of Girls' School or the Deputy Inspector of Schools concerned.

(2)

No teacher or other person employed in a private school shall give to the educational agencies at any time undated or predated resignation letter.

(3)

No educational agency shall insist or compel any teacher or other person employed in a private school to give at any time undated or predated resignation letter.

(4)

No teacher or other person employed in a private school shall be relieved from service on the strength of resignation letter. The resignation letter shall, on receipt, be sent to the Chief Educational Officer concerned in respect of teacher and other persons employed in High Schools, Higher Secondary Schools and Teachers' Training Institutes and to the District Educational Officer concerned in respect of teacher and other person employed in a Pre-primary, Primary and Middle Schools. The Chief Educational Officer or District Educational Officer concerned shall, in turn, get the confirmation of the teacher or other person employed, as the case may be, as to the fact of such resignation and then accord his approval to relieve the teacher or other person employed, as the case may be, from service.

(5)

Entries regarding the date of acceptance of resignation of appointment shall be made by the Secretary of the school committee, in the Service Registers of the teacher or in the Service Registers of the other persons employed in a private school under proper attestation and duly countersigned by the District Educational Officer or the Inspectress of Girls' Schools, as the case may be.

(6)

No substitute shall be appointed in the place of a teacher or other person employed in a private school who has been relieved on the basis of the resignation letter tendered by him, without obtaining prior approval of the Chief Educational Officer concerned in respect of the teacher and other person employed in High Schools, Higher Secondary Schools and Teachers' Training Institutions and the District Educational Officers concerned in respect of teachers and other persons employed in Pre-primary, Primary and Middle Schools.]

18.

Appeal against orders of punishment imposed on teacher and other person employed in private schools.

- The competent authorities, to whom an appeal under section 23 of the Act shall be from any teacher or person employed in a private school against any order of dismissal, removal or reduction in rank or whose appointments otherwise terminated or whose pay and allowances or any of whose conditions of service are altered shall be the following, namely: -

(a)

In respect of teachers and other persons employed in Pre-primary, Primary and Middle schools - The Chief Educational Officer;

(b)

In respect of a teacher and other person employed in High School [xxx]

[The words 'and Teachers' Training Institutes' was omitted by G. O. Ms. No. 1141, Education, Science and Technology (U.I), dated the 6th December 1994.]

or Higher Secondary Schools (other than Headmaster, Post-Graduate Assistants (both Academic and Languages) or Physical Director - the Joint Director of School Education, (Secondary Education).

(c)

In respect of Headmaster, Post-Graduate Assistant (both Academic and Languages) or Physical Director employed in Higher Secondary School - the Joint Director of School Education (Higher Secondary).

(d)

[In respect of teachers and other persons employed in Teachers' Training Institutes -The Deputy Director (Teacher Education).]

[Clause (d) was added by G.O. Ms. No. 1141, Education, Science and Technology (LI 1), dated the 6th December 1994.]

19.

Pay and allowances of teachers and other persons employed in private schools to be paid in the prescribed manner.

- The procedure for payment of pay and allowances to teachers and other persons employed in private schools shall be as in Annexure III.

20.

[Conditions for closure of private school, class and course of instruction therein.

[Rule 20 was substituted by G.O. Ms. No. 1071, Education, dated the 4th June 1998.]

(1)

No educational agency shall close a private school or a class or a course of instruction therein without giving a notice in writing to the competent authority who had given permission to open the school, the class or the course of instruction in Form VIII for closure of the private school and in Form VIII-A for closure of the class or the course of instruction in such school, and without obtaining orders permitting such closure from the competent authority.

(2)

The notice shall be given to competent authority before first September of the year preceding the year in which the closure is proposed to be given effect to.

(3)

Alternative arrangements shall be made for the continuance of the instructions to the pupils of the private school or the class or the course of instruction proposed to be closed, as the case may be, for the period of study for which they have been admitted.

(4)

Such closure shall take effect from the date of expiry (31st May) of the academic year, as specified by the competent authority permitting the closure.

(5)

The competent authority, while giving such permission for closure of the private school or the class or the course of instruction therein shall satisfy himself about the adequacy of the alternative arrangements proposed to be made. Any property endowed to the private school proposed to be closed shall be continued to be used for the educational purposes in accordance with the objects of the Trust or Endowment. All other property of the private school like contributions and donations from the public shall also be continued to be utilised for the educational purposes.]

21.

Educational agency to send list of properties.

- Every-educational agency shall send on or before the 1st January of each year, commencing from 1st January 1975, to the District Educational Officer concerned a statement in triplicate of all movable properties, the value of which, individually is not less than Rs. 50 (Rupees fifty only) and where there are more than one articles of the same category, if the total value of such article exceeds Rs. 200 (Rupees two hundred only) and of all immovable properties. In respect of immovable property, the statement shall contain the following particulars and shall be authenticated by the educational agency: -

(a)

Name of property;

(b)

Description, address and location;

(c)

Area extent together with the survey number;

(d)

In the case of cultivable land, its classification and the crops grown;

(e)

Market value;

(f)

Annual income derived from the property;

(g)

Remarks, if any.

Explanation. - A certificate from an officer of the Revenue Department not lower in rank than that of a Tahsildar shall be obtained in respect of (e) and (f), above at the time of the first submission of the statement.

Whenever there is any change in the movable or immovable properties, such change should be indicated in the statement.

22.

Restriction of transfer of property of private school.

(1)

The following shall be the competent authorities to permit the transfer of the property of a private school if they are satisfied that such a transfer is made in furtherance of the purposes of the private school or similar purpose approved by the competent authority.

Schools

Competent Authority

(1)

(2)

(a) Pre-primary, Primary and Middle Schools.

District Educational Officer

(b) High Schools, Higher Secondary Schools and

Teachers' Training Institutes.

Chief Educational Officer

(2)

For the purposes of this rule, the movable and immovable property shall be those as specified in rule 21.

(3)

Movable properties in respect of which permission has been obtained, shall be sold, only through public auction. Records of such public auction shall be maintained and submitted for inspection.

23.

Fees and other charges.

(1)

The competent authority to specify the fee or charges or receive any other payment in respect of every private school shall be the Chief Educational Officer. No fee or other charge or donation of any kind shall be collected either from the pupils or from parents or from public, except with prior permission of the competent authority. In respect of special fees, the levy of which has been specified by the competent authority, there shall be no deviation from the permitted rate or the purpose for which such levy was authorised. A separate account shall be maintained for such special fees and unutilised amount at the end of the year shall be carried over to the next year's account under the same head. All moneys that accrue to the school by way of special fees or any other payment authorised shall be brought to the school account and accounted properly.

24.

Utilisation of funds and property of private school.

(1)

The funds of the school shall be utilised for the bona fide purposes connected with the school, only with the prior permission of the District Educational Officer concerned. An appeal against the orders of the District Educational Officer shall be to the Chief Educational Officer.

(2)

Where the educational agency seeks to divert the funds from one purpose to another, it shall do so only after obtaining the prior permission of the District Educational Officer.

(3)

If any donation is collected, with the prior permission of the competent authority, for any specific or earmarked purpose, they shall be utilised only for that purpose. Balance, if any, shall be credited to the funds of the school.

25.

Accounts.

- Every private school shall maintain registers and records specified in Annexure IV. The registers and records in respect of the Pre-primary, Primary and Middle Schools, shall be produced to the Deputy Inspector of Schools and in respect of the High Schools and Higher Secondary Schools to the District Educational Officer whenever required. The Director of School Education may add, revise or modify the list of registers or records.

26.

Annual Audit of Accounts.

(1)

The authorities to audit the accounts of every private school shall be the following, namely: -

Schools

Competent Authority

(1)

(2)

(a) Pre-primary, Primary and Middle Schools.

Deputy Inspector of Schools.

(b) High Schools, Higher Secondary Schools and

Teachers' Training Institutes.

Departmental Auditors.

(2)

(a)

A copy of the reports on the audit of accounts shall be sent to the District Educational Officers, who shall forward the same to the educational agency.

(b)

The educational agency shall, within a period of one month from the date of receipt of the report, submit the same together with its comments, to the District Educational Officer. These comments of the educational agency shall be reviewed by the District Educational Officer.

27.

Inspection or inquiry.

(1)

The competent authorities to cause an inspection of, or inquiry in, respect of, any private school, its buildings, laboratories, libraries, workshops and equipment and also of the examinations, teaching and other work conducted or done by the private school to be made by such person or persons as it may direct and to cause an inquiry to be made in respect of any other matter connected with the private school shall be the following namely: -

Schools

Competent Authority

(1)

(2)

(a) Pre-primary, Primary and Middle Schools.

District Educational Officer.

(b) High Schools, Higher Secondary Schools and

Teachers' Training Institutes.

Chief Educational officer.

28.

Furnishing of returns.

- The competent authorities to whom the returns, statistics and other information shall be furnished by the educational agency under section 40 of the Act shall be the following, namely: -

Schools

Competent Authority

(1)

(2)

(a) Pre-primary, Primary and Middle Schools.

Deputy Inspector of Schools.

(b) High Schools, Higher Secondary Schools and Teachers' Training Institutes.

District Educational Officer.

29.

Appeal against order of competent authority.

- Any person aggrieved by any order, decision or direction of the competent authority under any provision (other than section 34) of the Act may prefer an appeal under section 41 of the Act, against such orders, decision or direction to the following authorities, namely: -

Section under the Act

Category of Schools

Competent Authority passing orders

Appellate Authority

(1)

(2)

(3)

(4)

Section 6

Pre-primary, Primary and Middle Schools

(a) Opening of new schools -Chief Educational Officer.

Joint Director of School Education (Elementary Education).

(b) Opening of additional standards or sections

- District Educational Officer.

Chief Educational Officer.

High Schools

(a) Opening of new schools - Joint Director of School Education (Secondary Education).

Director of School Education.

(b) Opening of additional standards or sections

- Chief Educational Officer.

Joint Director of School Education (Secondary Education).

Higher Secondary Schools

(a) Opening of new Schools - Joint Director of School Education (Higher Secondary).

Director of School Education.

(b) Opening of additional Standards or Sections

- Chief Educational Officer.

Joint Director of School Education (Higher Secondary.)

Section 8

Pre-primary, Primary and Middle Schools

Chief Educational Officer

Joint Director of School Education (Elementary Education).

High Schools

Joint Director of School Education (Secondary Education).

Director of School Education

Higher Secondary Schools

Joint Director of School Education (Higher Secondary).

Director of School Education.

Section 11

Pre-primary. Primary and Middle Schools (a) New Schools.

Chief Educational Officer

Joint Director of School Education (Elementary Education

(b) Higher standard or Additional sections.

District Educational Officer.

Chief Educational Officer

(c) Grant of continuance of recognition.

District Educational Officer.

Chief Educational Officer

High Schools [xxx] (a) New Schools

Joint Director of School Education (Secondary Education)

Director of School

Education

(b) Higher standard or Additional section

Chief Educational Officer

Joint Director of School Education (Secondary Education)

(c) Grant of continuance or recognition

Chief Educational Officer

Joint Director of School Officer Education (Secondary)

Teachers Training Institutes, New Teachers?

Training Institutes or Additional section in Teachers?

Training Institutes or Grant of continuance of recognition.

Deputy Director (Teachers Education)

Director of Teachers Education Research and Training

Higher Secondary Schools (a) New Schools

Joint Director of School Education (Higher Secondary)

Director of School Education

(b) Higher standards or Additional sections

Joint Director of School Education (Higher Secondary)

Director of School Education

(c) Grant of continuance or recognition

Joint Director of School Education (Higher Secondary)

Director of School Education

Section 12

Pre-primary, Primary and Middle Schools

Chief Educational Officer.

Joint Director of School Education (Elementary Education)

High Schools

Joint Director of School Education (Secondary Education)

Director of School Education

Higher Secondary Schools

Joint Director of School Education (Higher Secondary)

Director of School Education

Section 14

Pre-primary, Primary and Middle Schools

(1) Payment of grant - District Educational Officer

Chief Educational Officer.

(2) Withholding of grant - Joint Director of School Education (Elementary Education)

Director of School Education

High Schools

(1) Payment of grant - District Educational Officer.

Chief Educational Officer

(2) Withholding of grant - Joint Director of School Education (Secondary Education)

Director of School Education.

Higher Secondary Schools

(1) Payment of grant-District Educational Officer.

Chief Educational Officer

(2) Withholding of grant - Joint Director of School Education (Higher Secondary Education)

Director of School Education

Section 22

Pre-primary, Primary and Middle Schools

District Educational Officer.

Chief Educational officer

High Schools

Chief Educational Officer

Joint Director of School Education (Secondary Education).

Higher Secondary Schools (in respect of Officer, persons other than Headmasters, Post-Graduate Assistants (both Academic and Languages) and Physical Directors

Chief Educational Officer

Joint Director of School Education (Secondary).

Higher Secondary Schools (in respect of Headmasters, Postgraduate Assistants (both Academic and Languages) and Physical Director.

Chief Educational Officer

Joint Director of School Education (Secondary).

Section 29

Pre-primary, Primary and Middle Schools

(a) Closure of Schools - Chief Educational Officer

Joint Director of School Education (Elementary Education).

(b) Closure of standards or section - District Educational Officer.

Chief Educational Officer.

High Schools

(a) Closure of Schools - Joint Director of School Education (Secondary Education) Director of School Education.

(b) Closure of Standards or Sections or Course of Instructions-Chief Educational Officer

Joint Director, of School Education (Higher Secondary),

Higher Secondary Schools

(a) Closure of Schools - Joint Director of School Education (Secondary Education) Director of School Education.

(b) Closure of Standards or Sections or Course of instructions in +1 and +2 levels - Chief Educational Officer

Joint Director of School Education (Higher Secondary)

Section 31

Pre-primary, Primary and Middle Schools

District Educational Officer.

Chief Educational Officer

High Schools

Chief Educational Officer.

Joint Director of School Education (Secondary Education).

Higher Secondary School

Chief Educational Officer.

Joint Director of School Education (Higher Secondary).

Section 32

Pre-primary, Primary and Middle Schools

Chief Educational Officer.

Joint Director of School Education (Elementary Education).

High Schools

Chief Educational Officer.

Joint Director of School Education (Secondary Education).

Higher Secondary School

Chief Educational Officer.

Joint Director of School Education (Higher Secondary).

30.

Deposit with the Tribunal of pay and allowances of teachers and other persons employed in private schools in certain cases.

- In cases of appeal contemplated in sub-section (1) of section 44 of the Act, the Educational Agency shall deposit, at the time of appeal into the Tribunal, all arrears of pay and allowances due to such teachers or other persons from the date of their dismissal or removal or reduction in rank or termination of their appointment upto the date of deposit.

Annexure I

[Vide rule 11 (3)]

Payment of Grant

Recognised Private Schools may be paid grants from State Funds on the basis of orders issued, from time to time.

The grant payable to recognised private schools are the following, namely: -

(1)

Staff Grant. -The educational agency may be paid full grant to cover the entire approved expenditure on pay and other allowances of the teaching and non-teaching staff including other servants paid from contingencies.

(2)

Maintenance Grant - (a) Pre-primary, Primary and Middle Schools. - The educational agency may be paid up to 6 per cent of the assessed teaching grant as maintenance grant for the calendar year.

(b)

High Schools and Higher Secondary Schools. - The educational agency may be paid maintenance grant equal to the approved expenditure for the preceding financial year on rents, taxes, ordinary repairs, upkeep, contingencies and other miscellaneous items after deducting the educational agency's contribution determined by Government, from time to time.

(3)

Training Institutes. - The Training Institutes may be paid teaching grant. Such Grant shall be assessed on the basis of 2/3 of the net approved expenditure on pay to the staff, rent, taxes, repair and contingencies and 1/2 of the expenditure on Dearness Allowance, City Compensatory Allowance and House Rent Allowance.

(4)

Anglo-Indian Schools. - The Anglo-Indian Schools may be paid full teaching grant. Such grant shall be assessed to the Anglo-Indian Schools on the basis of the approved expenditure on pay and allowances to the staff, rent, taxes, repairs and contingencies after deducting the actual fee income.

Such schools may also be paid other grants specially ordered.

Annexure II

[Vide rule 16(1)]

Code of Conduct For Teachers and Other Persons Employed In A Private School

1. Every Teacher or other person employed in a private school shall discharge his duties efficiently and diligently and shall conform to the rules and regulations.

2. No teacher or other person employed in a private school shall absent himself from his duties without prior permission. In cases of sickness or absence on medical grounds, a medical certificate to the satisfaction of the school authorities shall be produced within a week.

3. No teacher or other person employed in a private school shall engage directly or indirectly in any trade or business. In the case of remunerative work like private institutions, specific written sanction of the schools authorities shall be obtained.

4. (a) No teacher or other person employed in a private school shall send any application for employment under any other agency except through the school committee of the School.

(b)

The school committee shall not withhold any such application. It shall however, be open to the School Committee to prescribe reasonable conditions for relieving him.

5. Prior permission of the school committee shall be obtained in a case where any teacher or other person employed in a private school seeks to accept honorary work without detriment to his duties as a teacher.

6. A teacher or other person employed in a private school who becomes involved in a criminal proceedings shall inform the school committee of such proceedings.

7. No teacher or other person employed in a private school shall engage himself in any political activity. He shall not be

associated with any political party or any organisation which takes part in politics or shall subscribe to, or assist in, any other manner any political movements.

8. No teacher or other person employed in private school shall contest or participate in, or canvass for, any elections. Such restriction will not, however, apply to the teachers in respect of elections to the Teachers' Constituencies.

9. No teacher or other person employed in a private school shall bring or attempt to bring any political or outside pressure on his superior authority in respect of his individual service interests.

10. No teacher or other person employed in a private school shall engage himself or participate in any demonstration or activity which is prejudicial to the sovereignty and integrity of India, the security of the State, the friendly relation with foreign States, public orders, decency or morality or which involves contempt of Court, defamation or incitement to an offence.

11. No teacher or other person employed in a private school shall indulge in any criticism of the policies of the Government either directly or indirectly or participate in activity which bring disrepute to the Government.

Adoption of legitimate methods of ventilating grievances however shall not be considered as criticism of the Government.

Annexure III

[Vide Rule 19]

Procedure For Payment of Pay and Allowances To Teachers and Other Persons In Private Schools

(1)

(a)

Pre-primary, Primary and Middle Schools in non-Panchayat Union areas. - The secretary of the school, shall submit a monthly statement containing the details of teachers and other persons, their pay and allowances, etc., for the month, to the Deputy Inspector of Schools. The Deputy Inspector of Schools, after scrutiny of the statement, shall submit the same to the District Educational Officer concerned with his recommendations. The District Educational Officer shall release the teaching grant bills to the Secretary of the school marking a copy of his sanction orders to the Treasury and who shall disburse the pay and allowances to the teachers and other persons employed in a private school on the 1st of every month or any date authorised by the Director of School Education.

(b)

Pre-primary, Primary and Middle Schools in Panchayat Union areas. - The Secretary of schools shall submit a monthly statement containing the details of teachers and other persons, their pay and allowances for the month, to the Deputy Inspector of Schools. The Deputy Inspector of Schools, after scrutiny of the statement, shall submit them to the District Educational Officer concerned with his recommendations marking a copy of his recommendations to the Commissioner of the Panchayat Union concerned.

The Panchayat Union Commissioner shall issue cheques during the last week of the month to the Secretary for the amount recommended by the Deputy Inspector of Schools. Such cheques shall be encashed only on the 1st of the next month or, on any date authorised by the Director of School Education-and the pay and allowances of teachers and other persons shall be disbursed on the same day.

In the meantime, the recommendations of the Deputy Inspector of Schools shall be perused by the District Educational Officer and he shall issue sanction orders to the commissioner. If any variations are found between the amount for which cheques are issued and the amount sanctioned by the District Educational Officer, such amount shall be adjusted in the payment for the next month by the Commissioner.

(2)

High Schools and Higher Secondary Schools. - The Secretary of High School and Higher Secondary Schools shall submit every month to the District Educational Officer an application for monthly staff grant in the form. It shall be accompanied by a detailed statement of the staff employed from the first to the last day of the month.

The statement shall be signed by both the Headmaster and the Secretary of the School. The statement shall reach the District Educational Officer before the 22nd of every month. Based on this statement, the District Educational Officer shall sanction staff grant in the specified bill form, before the 25th of the month, at the latest so as to enable the Secretary to encash the bill on the first of the succeeding month or any date authorised by the Director of School Education and disburse the salaries of the employees on the same day.

(3)

Special Schools and Training Institutes. - The Secretary of a special school or a training school shall submit a financial

statement in the prescribed form every year to the District Educational Officer. The auditors of the department will scrutinise the statement and certify to the correctness of the statement.

The grant is sanctioned once in a year to the Training Schools. The sanctioning authority shall be the District Educational Officer.

II. Under special circumstances, the District Educational Officer concerned may make direct payment to the Headmaster of a school or to the teachers of a school.

III. Before releasing the teaching grant or staff grant, the District Educational Officer shall verify and satisfy himself as to whether the appointments made by the school committee are in accordance with the rules and Government orders in force.

Annexure IV

(Vide Rule 25)

1. List of registers to be maintained by Pre-primary, Primary and Middle Schools:

(1)

Register of admission and withdrawals.

(2)

Register of Attendance of pupils.

(3)

Register of Attendance of teachers.

(4)

Acquittance roll of teachers.

(5)

Leave Registers.

(6)

Scale Register.

(7)

Register of fines.

(8)

Census Register.

(9)

Mark Register.

(10)

Stagnation Register.

(11)

Record Sheet.

(12)

Register of Scholarships and Acquittance Roll.

(13)

Stock Registers of particles purchased or received without Government grants.

(14)

Register of furniture, books and appliances purchased out of Government grants.

(15)

Library Stock Register.

(16)

Stock Register of Science equipments.

(17)

Stock Register of Games articles.

(18)

Cash Books.

2. List of registers to be maintained by High Schools and Higher Secondary Schools:

(1)

General Cash Book.

- (2)
General Ledger.
 - (3)
Special Fees Cash Book.
 - (4)
Special Fees Ledger.
 - (5)
Daily Fee Collection Register.
 - (6)
Term Fee Register.
 - (7)
Acquittance Register.
 - (8)
Scholarship Register.
 - (9)
Concession Register.
 - (10)
Postage Register.
 - (11)
Refund Register.
 - (12)
Admission Register.
 - (13)
Pupil's Attendance Register.
 - (14)
Stock Registers.
 - (15)
Staff Attendance Register -Teaching.
 - (16)
Staff Attendance Register -Non-teaching.
 - (17)
Casual Leave Register.
 - (18)
Leave other than Casual Leave Register.
 - (19)
Scale Register.
 - (20)
A separate Cash Book and Register for the Amenity Fund.
3. List of registers to be maintained by Training Institutes:
- (1)
Cash Book - General.
 - (2)
Cash Book - Special Fees.
 - (3)
Ledger - General.
 - (4)
Ledger-Special Fees.
 - (5)
Daily Fee Collection Register.
 - (6)
Acquittance Register.

- (7)
Scholarship Register.
- (8)
Stipend Register.
- (9)
Postage Register.
- (10)
Refunds Register.
- (11)
Stock Register.
- (12)
Staff Attendance Register - Teaching Staff.
- (13)
Staff Attendance Register - Non-Teaching Staff.
- (14)
Casual Leave Register.
- (15)
Leave other than Casual Leave Register.
- (16)
Leave Register - Pupils.
- (17)
Pupil's Attendance Register.
- (18)
Ad mission Register.
- (19)
Scale Register.

Annexure V

I. Qualifications for appointment as Teachers in private schools (Regulation):

Name of the Post

Qualifications

- (1)
- (2)
1. Headmaster (High Schools)
- (1) B.A or B.Sc., or its equivalent; and B.Ed.
or B.T. or L.T.; and Trained Teachers Certificate Collegiate
Grade.(2) Should have worked as Teacher in recognised schools for
a period of not less than five years after obtaining B.T. or its
equivalent degree.
2. B.T. Assistant
- B.A. or B.Sc. or its equivalent; and,B.T. or
B.Ed, or L.T.; andTrained Teachers Certificate to Collegiate
Grade.
3. Secondary Grade Teacher
- (1) S.S.L.C.(2) T.S.L.C. of Secondary Grade or
its equivalent.
4. Elementary Grade Teacher
- E.S.L.C. or its equivalent and Trained Teachers
Certificate of Elementary Grade or its equivalent.Teachers who
have passed the Nursery, Montessori and Kinder-garden School
Leaving Certificate Examination of Secondary Grade shall be
employed to handle Standards I and II only.

5. Tamil Pandits

(1) M.A. (Tamil) or B.A. (Tamil) or B.Litt., (Tamil) M.O.L. (Tamil) or B.O.L. (Tamil) and B.Ed, or B.T or Pandits Training or L.T. or Secondary Grade Training; or(2) S.S.L.C. completed; and Oriental Title of Chennai, Madurai or Annamalai University; and Pandits Training Certificate or Secondary Grade Training Certificate: Provided that persons who have passed Pulavar Panditham Examinations of the Madurai Tamil Sangam to be held up to April 1977 only with Pandits Training or Secondary Grade Training are also eligible for appointment as Tamil Pandits in Schools: Provided further that persons appointed as Tamil Pandit in any school prior to the 1st April 1976 shall be eligible for appointment in any other school even after 1st April 1976.

6. Pandit of other Languages (Languages other than Tamil)

(1) Degree of any University in the State or its equivalent with oriental language as special study; and Degree or Diploma in teaching of an University in the State or its equivalent; or(2) S.S.L.C. completed; and Titles or Certificate of Proficiency in oriental learning of an University in the State or its equivalent; and Pandits Training or Secondary Grade Training.

7. Physical Director

A Degree in Physical Education of any University in the State or its equivalent.

8. Physical Education Teacher(a) Grade -I

(1) A pass in first year B.A. or its equivalent degree, or(2) Intermediate; or(3) T.S.L.C. or Secondary Grade; or(4) Senior Basic Grade; and Government Teachers certificate of Higher Grade in physical education,

(b) Grade - II

S.S.L.C. Eligible; and Government Teachers Certificate in Physical Education. Explanation. - In high schools, the first physical education teacher should be a holder of Higher Grade Certificate. If a higher grade certificate holder is not available, a person with Government Teachers' Certificate in Physical Education may be appointed on regular basis. However, if any, additional Physical Education teacher is to be appointed, he shall be a holder of Higher Grade Certificate in Physical Education.

9. Wood Work Instructor

(1) S.S.L.C. completed; and(2) Industrial School Certificate; or Certificate course in Elementary Wood Working (Old Regulation) issued by the College of Arts and Crafts, Chennai; or Diploma Course in Wood Work issued by College of Arts and Crafts (New Regulations), Chennai; and(3) Technical Teachers' Certificate; or Crafts Instructor's Course Certificate of Teachers' College, Saidapet; and(4) National Trade Certificate in the Trade of Carpentry. One Year Course (with) One year paid (untrained teaching experience) or one year (paid) work

experience in a Standard Wood Work Factory or Institution; and(5) National Apprentice Certificate issued by the National

Council for Training in Vocational Trades (Wood Work).

10. Spinning and Weaving Instructor

(1) S.S.L.C. completed; and(2) Artisan Course

or Instructor's Course Certificate of the Government Textile

Institute, Chennai; orGovernment Technical Examination

Certificate (Lower Grade); orBunayee or Khadi Pravisaka Course

(one year) of the All India Spinners Association, Tirupur; or

Three years course certificate in Handloom and Powerloom Weaving

issued by the SMRV Technical Institute, Nagercoil awarded prior

to 1961; orTwelve months Craftsman Certificate in handloom

weaving of SMRV Technical Institute, Nagercoil; or National Trade

Certificate awarded by the National Council, for training in

vocational Trades, Government of India,Director-General of

Resettlement and Employment, New Delhi in Hand Weaving Trade; orDiploma in Handloom Technology, awarded by the Indian Institute

of Handloom Technology, All-India Handloom Board, Salem; and

Technical Teacher's Certificate; or Craft

Instructor's Course Certificate of Teachers College, Saidapet.

11. Instructor in Gardening and Agriculture.

(1) S.S.L.C. completed or its equivalent; and

Government Technical Examination Certificate (Lower Grade); and,Technical Teachers' Certificate; or(2) Completed Secondary

School Leaving Certificate with thirty-five per cent in

Agriculture (Theory and Practical separately) under the

Diversified Course; and Technical Teachers' Certificate.

12. Instructor in Home Craft

(1) S.S.L.C. completed; and(2) Government

Technical Examination (Higher Grade in Needle Work and

Dress-making and Higher Grade in Embroidery) Industrial School

Certificate; orNational Trade Certificate awarded by the

National Council for Training in Vocational Trades, Government of

India or the Diploma awarded by the Director-General of

Resettlement and Employment, New Delhi, in Embroidery and Needle

work; orDiploma in Costume Designing and Dress-making issued by

the State Board of Technical Education and Training, Chennai; and(3) Technical Teacher's Certificate.

13. Instructor in Music

(1) Degree with Music under Part III; or

S.S.L.C. completed; andSangeetha Bushana of Annamalai

University; orSangeetha Vidwan title in Music awarded by the

Director of Government Examinations, Chennai; orSangeetha

Sirpnamani of the Chennai University; Diploma in music of the

Chennai University or Madurai University; andTechnical Teacher's

Certificate; or(2) S.S.L.C. completed; and Government Technical

Examination Certificate (Higher Grade in Music); and Technical

Teachers' Certificate; or(3) Completed S.S.L.C with forty per

cent in Music (Theory and Practical separately under the

diversified courses); andTechnical Teachers' Certificate; orDiploma in Music Teaching awarded, by the Director of Government

Examinations.(4) Teachers' certificate in Indian Music issued by

the Director of Government Examinations.

14. Drawing Master

(1) (a) Degree with Drawing and Painting under Part III of an University in the State or its equivalent; or Diploma in Painting or Diploma in Drawing of the Annamalai University; or(b) S.S.L.C. completed; and Government Technical Examinations (Higher Grade) in Free hand outline and Model Drawing; or Government Diploma in Drawing; and(2) Technical Teachers' Certificate.

15. Metal Work Instructor, Electric Wiring

Instructor, Book-Binding Instructor, Tailoring Instructor, Leather Work Instructor, Clay Modelling and Paper Making, Coir Instructor, Basketing and Ratan Work Instructor.

(1) S.S.L.C. completed; and(2) Industrial School Certificate; or Government Technical Examination of Lower Grade in the subject; or Certificate of the Government of India, Director of Resettlement and Employment (Ministry of Labour). Explanation. - The Industrial School Certificate should, ordinarily, be of not less than two years duration and for the particular subject alone and not for a number of subjects.

Diversified Course: 16. Secretarial Assistant

(1) B.Com., Degree of Chennai or Madurai or Annamalai University; and B.T. or its equivalent Degree; or Technical Teacher's Diploma; (2) D.Com. issued formerly by the Commissioner of Government Examinations or D.Com. issued thereafter under the Scheme of Government Technical Examinations by the Board of Examinations (Technical Examination); and Technical Teacher's Diploma.

17. Commercial Instructor

(1) Government Technical Examination in Typewriting (Higher Grade); and Technical Teachers' Certificates Engineering: 18. Senior Instructor

(1) B.E. (Mechanical) or B.E. (Electrical) or a degree equivalent thereto; or (a) L.M.E. or D.M.E. or L.E.E. or D.E.E.; or (b) (i) B.Sc. (Physics Main) and Electrical; or Mechanical Engineering subsidiary; (ii) Workshop experience or teaching experience in a recognised institution for a period of three years; B.T. or B.Ed, or L.T. with not less than two years' workshop experience or teaching experience in a recognised school.

19. Assistant Instructor

L.M.E. or D.M.E. or L.E.E.; or D.M.E. with a minimum of one year practical experience in engineering workshop or as Instructor in a recognised technical school.

20. Senior Mechanic

Diploma in Mechanical or Electrical Engineering issued by the State Board of Technical Education and Training, Chennai or by any other recognised institution or Board, or Industrial School Certificate issued by the Department of Industries and Commerce or by the Department of Employment and Training in general; mechanical course of Fitting or Motor Mechanic or Turner or Carpenter or Machinist (Composite) trades or Workshop Foreman Mechanic, or Craftsman Trained Diploma issued

by the Government of India in Fitting or Motor Mechanic or Turner or Carpenter or Machinist (Composite) trade, or National Trade Certificate issued by the National Council for Training in Vocational Trades in Fitting or Motor Mechanics or Turner or Carpenter or Machinist (Composite); and

(2) Two years' teaching experience or practical experience; or Certificate of apprenticeship training issued under the National Apprenticeship Training Scheme by the Directorate-General of Employment and Training and National Council for Training in Vocational Trades in the Trades of Fitting or Motor Mechanic or Turner or Carpentry or Machinist (Composite) with two years' teaching or practical experience; or National Apprenticeship Certificate issued under the Apprentice

Act by the National Council for Training in Fitter or Motor Mechanic or Turner or Carpenter or Machinist (composite) with one year's teaching or practical experience.

21. Junior Mechanic

Industrial School Certificate issued by the Department of Industries and Commerce or by the Department of Employment and Training, Tamil Nadu in the Trade of Carpenter and Cabinet Maker; or Certificate of Craftsman Training Diploma in Carpentry issued by the Government of India or National Trade Certificate in Carpentry issued by the National Council for Training Vocational Trades; or Certificate of apprenticeship in Carpenter issued under the National Apprenticeship Training Scheme by the Directorate General of Employment and Training and National Council for Training in Vocational Trades; or National Apprenticeship Certificate in Carpentry issued under the Apprentice Act by the National Council for Training in Vocational Trades; or Craft Instructors Certificate in Wood work awarded by the Teachers College, Saidapet.

22. Instructor in Agriculture

B.Sc., Agriculture; or B.A. or B.Sc. with Agriculture as a subject in a degree courses; or B.Sc. with Agriculture as a subject in the Intermediate; or B.A. or B.Sc., (Botany or Zoology) with Higher Grade Certificate in Agriculture.

If persons possessing the qualifications prescribed above, are not available, any of the qualifications specified below may be deemed as sufficient: -Licentiate in Agriculture (Mysore); or S.S.L.C. eligible or completed with Agriculture Higher Grade and

T.T.C. in Agriculture; or S.S.L.C. eligible or completed with Agriculture under the diversified course (From 1976).

23. Instructor in Textile Technology

Licentiate or Diploma in Textile Technology; and Work experience in Weaving in a recognised Textile manufacturing concern for a period of not less than two years.

24. Instructor in Home Science

(1) A degree in Home Science, and L.T. or B.T. or B.Ed.

25. Drawing and Painting Instructor.

Degree with Drawing and Painting under Part III

of an University in the State or its equivalent; or Diploma in Painting or Diploma in Drawing of the Annamalai University; or S.S.L.C. completed; and A Diploma in Drawing - Second Class or painting granted by the College of Arts and Crafts, Chennai or Government Diploma in Drawing.

26. Instructor in Music

(1) A degree with Music in Part III; or (2)

Diploma or title holder in Music, or S.S.L.C. or its equivalent; or Sangeetha Sironmani or Sangeetha Bhushana title.

27. Instructor in Dancing

Diploma in Dancing awarded by Kalakshetra, Thiruvannamipur; or Higher Grade Certificate awarded by the Director for Government Examinations, Chennai; or Natya Visharada Examination Certificate conducted by the Tamil Nadu Music College, Adyar.

Explanation. - The Technical Teachers'

Certificate means the Technical Teachers Certificate awarded by the Education Department and includes the Teachers Training Certificate issued by the Department of Industries and Commerce before 1963 and the Technical Teachers' Course Certificate issued by the Department of Employment and Training on and from the 1st January 1963.

II. Qualifications for Appointment as Teachers in the Private Special Schools for the (1) Deaf and Dumb, (2) Blind, (3) Mentally Retarded.

Name of the post

Qualifications

(1)

(2)

1.

Headmaster in the Special Schools for Deaf and Dumb (High School).

B.A. or B.Sc., or its equivalent; and Trained Teachers Certificate of Collegiate Grade; and Senior Diploma in teaching the Deaf and Dumb,

2.

Headmaster in the Special Schools for the Blind (High School)

B.A., or B.Sc., or its equivalent; and Trained Teachers Certificate of Collegiate Grade; and Senior Diploma in Teaching the Blind.

3.

Headmaster in the Special School for the Mentally Regarded (High School).

B.A., or B.Sc., or its equivalent; and Trained Teachers Certificate of Collegiate Grade; and Senior Diploma in teaching the mentally retarded.

4.

Teachers in the Special School for the Deaf and Dumb (High School Standard IX to XI).

B.A., or B.Sc., or its equivalent; and Trained Teachers Certificate of Collegiate Grade; and Senior Diploma in

teaching the Deaf and Dumb.

5.

Teachers in the Special School for the Blind

(High School Standard IX to XI).

B.A. or B.Sc., or its equivalent; and Trained

Teachers Certificate of Collegiate Grade; and Senior Diploma in teaching the Blind.

6.

Teachers in the Special School for the mentally

retarded (High School Standard IX to XI).

B.A., or B.Sc., or its equivalent; and Trained

Teachers Certificate of Collegiate Grade; and Senior Diploma in teaching the mentally retarded.

7.

Teachers in the Special School for the Deaf and

Dumb (Primary and Middle School Standard).

S.S.L.C. or its equivalent; and Trained Teachers

Certificate of Secondary Grade; and Junior Diploma in teaching the Deaf and Dumb.

8.

Teachers in the Special School for the Blind

(Primary and Middle School Standards).

Trained Teachers Certificate of Secondary Grade;

and Junior Diploma in Teaching the Blind.

9.

Teachers in the Special School for the mentally

retarded (Primary and Middle School Standard).

Trained Teachers Certificate of Secondary Grade;

and Junior Diploma in teaching the mentally retarded.

III. Qualifications for the Non-teaching Staff in Private Schools including Training Schools:

Name of the post

Qualifications

(1)

(2)

1.

Clerks including Library Clerk.

S.S.L.C. with eligibility for College Course.

2.

Record Clerk, Laboratory and Library Assistant.

S.S.L.C. completed.

3.

Peons.

A pass in Standard VIII.

4.

Watchman, Waterman, Gardener, Sweeper and

Scavanger.

To read and write Tamil.

IV. Qualifications for appointment as teachers in Higher Secondary Schools:

Name of the post

Qualification

(1)

(2)

1.

Headmaster or Headmistress (Higher Secondary Schools)

(i) A Master's Degree of a University in the State for teaching any of the languages under Parts I and II or subjects under Part III, Group "A" of the syllabus for Higher Secondary Courses or a Master's Degree of equivalent standard in any one of the subjects or languages specified in the said syllabus or a certificate issued by the University of Chennai for having undergone the Certificate Course in Science and Humanities for Graduate Teachers in High Schools during the year 1960-1964;]

(ii) B.T. or B.Ed., degree or its equivalent, (iii) Experience for a period of not less than ten years as B.T. School Assistant or Pandit in a Secondary school or Training School or Higher Secondary School recognised by the Director of School Education:

Provided that the experience in the category of Headmaster and Headmistress in a School recognised by the Director of School Education shall be taken into account for calculating the experience in the category of B.T. Assistant.

2.

Post-Graduate Assistants Academic subjects.

(i) A Master's Degree or its equivalent standard in the subject in respect of which appointment is made: Provided that persons holding the certificate in Science and Humanities for Graduate Teachers in High Schools shall be considered for appointment as teachers in the subject relating to Science and Humanities: Provided further that, other things being equal, preference shall be given to those who have studied the same subject in which he has obtained the Post-Graduate degree as main subject under Part III in degree level: Provided also that for appointment to certain subjects in which Master's degree are not awarded, persons possessing Master's degree in other subjects shall be considered: Provided also that a Master's degree in Statistics or its equivalent standard in Statistics shall be an alternative qualification for appointment as subject teachers in Maths by promotion; and (ii) B.T. or B.Ed, degree or its equivalent.

3.

Post-Graduate Assistants Languages (Tamil)

(i) A Master's degree in Tamil or its equivalent; and (ii) B.T. or B.Ed. degree or its equivalent: Provided that for appointment to the post by recruitment by transfer from the Post of Tamil Pandit in the High School, the Pandit Training or Secondary Grade Training shall "be considered as equivalent qualification to the B.T. or B.Ed. Degree. Provided further that, other things being equal, preference shall be given to those who have studied Tamil as a Main Subject both in degree and Master's degree levels.

4.

Post-Graduate Assistants in Language (Other than Tamil)

(i) A Master's Degree in the Language in respect of which appointment is made or its equivalent; and(ii) B.T. or B.Ed. Degree or its equivalent: Provided that for appointment to the post by recruitment by transfer from the post of Pandit and Munshie in the High Schools, the Pandit Training or Secondary Grade Training shall be considered as equivalent qualification to the B.T. or B.Ed., degree:Provided further that, other things being equal, preference shall be given to those who have studied the same subject in degree and Master's degree levels.

5.

Physical Directors and Physical Directoress in Higher Secondary Schools

(i) A.M.P.Ed. Degree or equivalent; or(ii) A Diploma equivalent to M.P.Ed. degree.

Explanation. -The qualifications prescribed as above for all post shall be applicable for the appointments to be made in private schools on or after the date of the publication of the notification of the rules.

(2)

Persons who are in service prior to the issue of this notification shall be eligible for appointment in any other school even after the issue of this notification.

The Director of School Education shall be the authority competent to evaluate and accept other qualifications for purpose of appointments in schools.

[Annexure V-A]

[Inserted by G.O. Ms. No. 125, School Education (X2), dated the 12th November 2003.]

[Vide rule 15(6-A)]

I. Qualifications for appointment as Junior Grade Teachers in Private Schools.

Name of the Post

Qualifications

(1)

(2)

1.

Junior Grade B.Ed. Teacher in High Schools and Higher Secondary Schools.

B.A. or B.Sc. of any University in the State or its equivalent and B.T. or B.Ed.

2.

Junior Grade B.Ed. Teacher in Middle Schools.

B.A. or B.Sc. of any University in the State or its equivalent and B.T. or B.Ed.

3.

Junior Grade Secondary Grade Teacher.

S.S.L.C. and Diploma in Teacher Education Certificate of Tamil Nadu or its equivalent.

4.

Junior Grade Elementary Grade Teacher (Trained in Nursery, Montessori and Kinder Garden).

S.S.L.C or its equivalent and Trained Teachers

Certificate of Pre-Primary Teachers Training or Pre-Basic

Teachers Training in Nursery, Montessori., Kinder Garden Course:Provided that the teachers who have passed in Pre-School Teacher

Training Course or Pre Basic Teacher Training Course shall be employed to handle Standard I and II only.

5.

Junior Grade Tamil Pandits

(1) B.A. (Tamil) or B.Litt.(Tamil) or B.O.L.

(Tamil) and B.Ed., or Pandits Training or Secondary Grade

Training or its equivalent.(2) A pass in S.S.L.C.; and Oriental

Title of [Chennai], Madurai or Annamalai University; and Pandits

Training Certificate or Secondary Grade Training Certificate: Provided that persons who have passed Pulavar Panditham Examinations of the Madurai Tamil

Sangam held up to April 1977 with Pandits

Training or Secondary Grade Training are also eligible for

appointment as Tamil Pandits in School.

6.

Junior Grade Pandits of other languages

(1) Degree of any University in the State or its

equivalent with oriental language as special study and B.Ed., or

Pandit Training or Secondary Grade Training or its equivalent; or (2) A pass in S.S.L.C.; and

Titles or Certificates of proficiency in

oriental learning of any University in the State or its

equivalent and Pandits Training or Secondary Grade Training or

its equivalent.

7.

Junior Grade Physical Director in High Schools

A. B. P. Ed. degree or its equivalent.

8.

Junior Grade Physical Education Teacher

(1) A pass in first year B.A., or its equivalent

degree or Higher Secondary Course or TSLC or Secondary Grade or

Senior Basic; and (2) Government Teachers Certificate of Higher

Grade in Physical Education or Certificate in Physical Education

Course.

9.

Junior Grade Instructor in Sewing

(1) A pass in S.S.L.C.; and (2) Government

Technical Examination (Higher Grade in Needle work and

Dress-making and Higher Grade in Embroidery); or Industrial

School Certificate; or National Trade Certificate awarded by the

National Council for Training in Vocational Trades, Government of

India or the Diploma awarded by the Director-General of

Resettlement and Employment, New Delhi in Embroidery and Needle

work; or Diploma in Costume Designing and Dress-making issued by

the State Board of Technical Education and Training, Chennai; and (3) Technical Teacher's Certificate.

10.

Junior Grade Instructor in Music

(1) Degree with Music under Part III; or S.S.L.C. Completed; and Sangeetha Bushana of Annamalai

University; or Sangeetha Vidwan title in Music awarded by the

Director of Government Examinations, Chennai; or Sangeetha

Sironmani of the Chennai University; or Diploma in Music of the

Chennai University or Madurai University; and Technical Teacher's

Certificate; or (2) S.S.L.C. Passed; and Government Technical

Examination Certificate (Higher Grade in Music); and Technical Teacher's Certificate; or(3) A pass in S.S.L.C. with forty per cent in Music (Theory and Practical separately under the diversified courses); and Technical Teacher's Certificate; or Diploma in Music Teaching awarded by the Director of Government Examinations; or(4) Teacher's Certificate in 'Indian Music' issued by the Director of Government Examinations.

11.

Junior Grade Drawing Master

(1) (a) Degree with Drawing and Painting under Part III of any University in the State or its equivalent; or Diploma in Painting or Diploma in Drawing of the Annamalai University; or(b) S.S.L.C. passed; and Government Technical Examinations (Higher Grade) in Free-hand outline and Model Drawing; or Government Diploma in Drawing; and(2) Technical Teacher's Certificate.

12.

Junior Grade Pre-vocational Teachers

A pass in S.S.L.C.; and A Certificate in Higher Grade of the relevant subject.

II. Qualifications for appointment as Junior Grade Teachers in Higher Secondary Schools:

Name of the Post

Qualifications

(1)

(2)

1.

Junior Grade Post-Graduate Assistants in Academic Subjects

(i) A Master's Degree or its equivalent in the relevant subject; and(ii) B.T., or B.Ed., Degree or its equivalent.

2.

Junior Grade Post-Graduate Assistants in Languages (Tamil)

(i) A Master's degree in Tamil or its equivalent; and(ii) B.T., or B.Ed., Degree or its equivalent.

3.

Junior Grade Post-Graduate Assistant in languages (Other than Tamil)

(i) A Master's Degree in the Languages in respect of which appointment is made or its equivalent; and(ii) B.T. or B.Ed., Degree or its equivalent

4.

Junior Grade Physical Directors

(i) A M.P.Ed., Degree or its equivalent; or(ii) A Diploma equivalent to M.P.Ed., Degree. '

[Annexure VI]

[Annexure VI was added by G.O. Ms. No. 535, Education (UI), dated the 17th May 1989.]

[Vide rule 9(2-A)]

Additional Conditions To Be Satisfied For The Purpose of Recognition of A Teacher Training Institute

I. Location, Land and Building. - [1. Each Teacher Training Institute shall have five acres of land for building and playground together in a contiguous area in all areas except in Municipal or Corporation areas where it shall be three

acres for the purpose.]

[Substituted by G. O. Ms. No. 804, Edu., Science and Tech., dated the 16th September 1994.]

2. The institute should be located at a suitable central place which is well linked with various part of the district, but preferably away from the District headquarters.

3. Admission into the institute should be open to all without discrimination based on religion, castes, communities and place of birth.

4. Pucca building should be designed in such a manner as to satisfy aesthetic tastes with sufficient light, fans and ventilation facilities, giving sufficient passages, sanitary blocks, etc.

5. [Building:

(a)

Class room. - Each Teacher Training Institute shall have two class rooms of dimension 24" x 25", that is, six hundred sq.feet each for the first year and the second year on the basis that the intake per year shall be forty and the area per student teacher shall be fifteen sq. feet.

(b)

Auditorium. - Each Teacher Training Institute shall have a multi-purpose hall of dimension 24" x 50", that is, one thousand and two hundred sq. feet.

(c)

Laboratory. - Each Teacher Training Institute shall have a laboratory with an area of one thousand sq.feet.

(d)

Library. - Each Teacher Training Institute shall have library with an area of one thousand sq.feet.

(e)

Games room. - Each Teacher Training Institute shall have a games room with an area of two hundred and fifty sq.feet.

(f)

Work experience and Art Education room. - Each Teacher Training Institute shall have a room for work experience and Art Education with an area of six hundred sq.feet.

(g)

(i)

Headmaster's and Office room. - Each Teacher Training Institute shall have a room for the Headmaster and the Office with an area of three hundred sq.feet.

(ii)

Teaching staff room. - Each Teacher Training Institute shall have a staff room with an area of one hundred and fifty sq. feet which may be divided into separate enclosures, if necessary.]

6. Adequate space should be left for tree plantation, development of lawns gardens and for agricultural activities; [A Kitchen Garden and a Botanical Garden catering to science syllabus shall be provided.]

[Added by G.O, Ms. No. 804, Education, Science and Tech., dated the 16th September 1994.]

7. Fire protection appliances, as prescribed by rules should be provided.

II. Amenities:

1. [Protected water supply. - Protected drinking water shall be provided in water drums in rooms or through ten taps from a storage tank in each Teacher Training Institute.

[Substituted by G. O. Ms. No. 804, Edit., Science and Tech., dated the 16th September 1994.]

2. Sanitary Teachers. - Based on the well laid down rules given in the Tamil Nadu Grant-in-aid-code, there shall be following sanitary faculties in each Teacher Training Institute: -

(a)

Student Teachers. - Ten water-closets for Girls Institutions and six for Men's institutions. In addition, six urinal components of 20" width shall be provided for men students.

(b)

Staff. - One water-closet for women staff and one water-closet for men staff shall be provided.

(c)

Co-educational Institutions. - If the Institution is meant for both sexes, separate such facilities shall be provided for men and women teaching and non-teaching staff and men and women candidates.]

3. Hostel. - Safe hostel facility shall be provided for Girls students coming from far off places. A warden's quarters shall

also be provided.

4. Ventilation. - All rooms in each Teacher Training Institute shall have ventilation facilities and shall be provided with fans.

5. Electricity. - In addition to lighting facilities, plug points to tap power for audio visual education shows shall be provided in each Teacher Training Institute.

III. Equipment:

1. [Library. - At least one thousand and five hundred titles on different areas as suggested in the syllabus shall be stocked. In addition, journals shall have to be substituted. Current text-books published by the Tamil Nadu Text Book Corporation and the National Council for Education, Research and Training shall be stocked in sufficient numbers. Current syllabus in different subjects shall also be kept. Suggested book from the list prepared by the Director of Teacher Education, Research and Training for guidance and updated, from time to time, shall be stocked in each Teacher Training Institute.

[Substituted by G. O. Ms. No. 804, Edit., Science and Tech., dated the 16th September 1994.]

2. Furniture. - Minimum furniture as prescribed by the Director of Teacher Education, Research and Training shall be provided in Teacher Training Institute.

3. Laboratory equipment. - Minimum quantity and variety of equipments as prescribed by the Director of Teacher Education, Research and Training shall be provided in each Teacher Training Institute.

4. Teaching appliances, audio and Visual equipments, maps and charts, etc. - Teaching appliances, audio visual equipments, maps, charts, etc. as prescribed, by the Director of Teacher Education, Research and Training shall be provided in each Teacher Training Institute.

5. Sports and Games materials, Arts and Music equipments, etc. - Sports and Games materials, Art and Music equipments as prescribed by the Director of Teacher Education, Research and Training shall be provided in each Teacher Training Institute.

6. Work experience. - Each Teacher Training Institute shall arrange to provide one work experience activity. In addition, provision shall be made to give training in such activities as clay modelling fret-work, paper-bamboo work, etc., as prescribed in the syllabus.

7. Others. - Provision shall be made in each Teacher Training Institute for extension activities in the field of non-formal education.]

IV. Laboratory & V. Library. - [Omitted by G.O. Ms. No. 804, Education, Science and Technology, dated the 16th September 1994.]

VI. Play Ground. - Play Ground space for sports, gymnastics and other physical education activities with an area of about 5 acres should be provided. If the institute is meant for both, sexes, another 3 acres of land should be provided exclusively for women candidates. The playground should be provided adjacent to the main institution building within the campus and not in a remote place away from the institution.

Sports articles for all games should be provided with sufficient extra numbers.

VII. Crafts. - To acquaint the teacher-training with the productive occupation of the community and to develop in them a spirit of recognition and respect for manual work and workers employed in them, they have to be trained in socially useful productive work.

VIII. Teaching Practice. - At least one full-fledged recognised middle school with Standards I to VII should be functioning under the same management of every Teacher Training Institute making recognition, for the purpose of providing teaching practice to the trainees. This will be pre-condition even at the time of sending in applications for recognition of Teacher Training Institutes. The practical aspects of the training will be assessed by the competent Board to be constituted by the concerned authority. [The Model School shall be with Tamil medium in standard I to VIII. In addition, the Teacher Training Institute should get consent letters from schools in the neighbouring area to arrange for teaching practice in standards I to VIII for the trainees of the Teacher Training Institute.]

[Substituted by G.O. Ms. No. 804, Edu., Science and Tech., dated the 16th September 1994.]

IX. Strength. - [Each Teacher Training Institute shall admit only forty students at the maximum. The Government shall have the power to order reduction in the intake of students or suspend the training in a year depending on the need for trained teachers in a year.]

[Substituted by G.O. Ms. No. 804, Edit., Science and Tech., dated the 16th September 1994.]

X. Endowment. - [The educational agency of a Private Teacher Training Institute shall create an endowments of Rs.

1,00,000 (Rupees One lakh only) as per rule 9(2)(c)(i) of these rules and the endowments shall be invested as provided for in the said rules. The Educational Agency of a Private Teacher Training Institute shall also make a deposit of one month's salary in respect of all staff of the Institute as per rule 9(2)(c)(ii) of the said rules.]

[Substituted by G.O. Ms. No. 804, Edu., Science and Tech., dated the 16th September 1994.]

XI. Certificate to be enclosed. - 1. A structural stability certificates of the institution building issued by the Territorial Executive Engineer of the Public Works Department.

2. The sanitary certificates issued by the Health Officer of the locality.

3. A licence permitting the use of the school building as public building under the Tamil Nadu Public Building (Licensing) Act, 1965 (Tamil Nadu Act XIII of 1965).

4. If the above building licence has been issued for a separate period, a fresh licence shall be produced before the expiry of the period of validity of the said licence.

5. [Evidence of ownership of land in the name of the institution of Educational Agency with periodically updated encumbrance certificate shall be produced:

Provided that, -

(i)

if the land is in the name of the Educational Agency, the Educational Agency should furnish a registered agreement to the effect that the land provided to the institution is placed at the disposal of the institution for its exclusive Use and possession and will not be used for any other purpose and any transfer by way of sale, etc., of the said lands shall not be made without the permission of the competent recognising authorities; and

(ii)

in the event of the Educational Agency deciding to transfer or alienate the institution, it shall do so along with the land earmarked for the institution.]

XII. Management. - 1. Institution shall not be run for profit to any individual or group of individuals.

2. The institution shall follow the course of studies and the syllabus prepared by the Department.

3. The institution shall not collect fees or donations compulsorily other than the special fees permitted by the authorities.

4. The institution shall make admission only by following procedure and other norms fixed by the authorities.

5. Admission to the Institution shall be open to all without discrimination, based on religion, caste, creed and place of birth.

6. The institution shall carry out the instructions issued by the [Director of Teacher Education, Research and Training]

[Substituted by G. O. Ms. No. 804, Edit., Science and Tech., dated the 16th September 1994.]

or other officers subordinate to him with a view to maintain the academic standards and to safeguard the interest of teachers and the pupils including the linguistic minorities.

7. The application for recognitions shall be made within three months from the date of opening of the institution by minority institutes and before starting the Teacher Training Institute in case of non-minority institutes. Where temporary recognition is accorded, application for continuance shall be made not later than three months prior to the expiry of the period of the temporary recognition. Only on the specific request through prescribed application, the question of further continuance will be considered and the same will not be accorded automatically.

8. The need for the opening of the institution in that area will be assessed by a District Committee with a Joint Director nominated by the [Director of Teacher Education, Research and Training]

[Substituted by G. O. Ms. No. 804, Edit., Science and Tech., dated the 16th September 1994.]

is Chairman with Chief Educational Officer and District Educational Officer/Inspectress of Girls Schools as members, as the case maybe. This Committee will submit a report about satisfaction of norms based on which the competent authority will consider recognition for the institution.

9. The authority competent to grant recognition shall take into account the need for granting such recognition to Teacher Training Institutes taking into consideration the trained teachers already available and waiting for appointment and the potential to absorb the teachers to be trained in future, in the services of Government and private schools.

XIII. Rejection. - It shall be open to the competent authority to reject the application for recognition, if he considers that any one or more of the requirements referred to under this conditions has not been satisfied. Every order of such authority rejecting the application shall specify the grounds for such rejection. An appeal shall be to the authorities as specified in the rules.

XIV. Inspection. - The recognised institutions will be inspected by the inspecting officers, from time to time, to ensure

that the conditions laid down for recognition are fulfilled and instructions are followed by the institutions and also to take steps to remove the deficiencies or irregularities, if any, at the time of such inspections, the management should provide all the records and registers for scrutiny.

[XV. Staff requirements:

[Added by G.O. Ms. No. 804, Edu., Science and Tech., dated the 16th September 1994.]

Teaching staff

Qualification, etc.

(1)

(2)

(a) Headmaster

A post graduate degree in any subject taught in middle school; or in Psychology and M.Ed., degree with a minimum of five years of teaching experience in recognised schools.

(b) Subject teacher

A post graduate degree in the relevant subject and M.Ed., degree with teaching experience preferably in recognised schools. There shall be four subject teachers to handle Tamil, English, Mathematics, Science and Social Science.

The Headmaster shall handle one of the five subjects.

(c) Specialist Teacher:(i) Physical Education

Teacher(ii) Craft Instructor

Graduates/S.S.L.C.; and Certificate in Physical

Education. S.S.L.C. and Government Technical Examination

Certificate in the relevant craft subject as prescribed in the

relevant provisions in Annexure V of these rules and Technical

Teacher's Certificate.

(d) Non-teaching staff(1) A Junior Assistant(2) A Library Attender(3) A Laboratory Assistant(4) One Office Assistant.(5) A Watchman

Qualification as prescribed by the Government for appointment in schools]

Form I

Application For Opening of A Pre-Primary/primary/middle School

[Vide rule 5(1)]

1. (a) Name of the centre (in Block letters) where the Pre-Primary, Primary/Middle School is proposed to be opened.

(b)

Name of the School.

2. Revenue District, Taluk and Post Office.

3. (i) Details of the educational agency which proposes to open the school

(ii)

Is the educational agency a registered body ? If so, the details should be furnished.

4. Standards proposed to be opened.

5. Whether the centre where the proposed school is to be opened lies in -

(a)

Taluk Headquarters Town (or)

(b)

Municipality /Township (or)

(c)

Panchayat Union area (or)

(d)

Rural area not coming under any of the above categories.

6. (a) Population of the centre and also of the contiguous place from where pupils might seek admission into the school

(men and women should be furnished separately).

Explanation. - The names of villages, population and distance to the centre should be furnished separately.

(b)

Number of school-age children in the centre: -

Boys

Girls

Total

(i)

2-1/2-6 age group,

(ii)

6-11 age group,

(iii)

11-14 age group.

(c)

Number already brought under instruction in the existing schools.

(d)

Number yet to be brought under instruction.

7. (a) Name of other Pre-Primary/Primary/Middle Schools in the locality.

(b)

Distance of such schools from the proposed school.

(c)

Particulars of strength, attendance (roll and attendance) of such schools (standard-wise particulars should be furnished)

8. Name of the schools that are likely to feed the proposed school together with their distance from the proposed school.

(The standard-wise particulars regarding strength, etc., to be furnished.)

9. Whether there is any natural barrier between the existing schools and the proposed school, if so, the same may be explained in full detail. A rough sketch plan should be enclosed.

10. Whether an application was made for permission in previous years. If so, the reference number and date and the nature of orders passed by the competent authority should be furnished.

11. Whether the, proposal is for the conversion of a pre-primary school into primary school or a primary school into a middle or for opening a new school.

12. What is the accommodation proposed to be provided for the proposed school ?

(a)

Is the building ready for occupation ?

(b)

A rough sketch showing the accommodation proposed for class room, etc., duly marked should be attached.

(c)

Whether the building is a pucca thatched or a tiled one ?

(d)

Whether it is owned or rented or rent-free ?

(e)

Extent of area available for each standard.

13. Whether the educational agency is prepared to create -

(a)

Endowment as required in rule 9(2)(c)(i) ?

(b)

Cash reserve as required in rule 9(2)(c)(ii) ?

14. A rough sketch of the place where the schools proposed to be opened, specifying the following particulars should be submitted.

(a)

The locality where the school is proposed to be opened ?

(b)

Pre-Primary/Primary/Middle Schools in the area with distance duly marked.

15. Number of pupils expected to join in each of the standards of the proposed school.

Place:Date:

Signature of the person duly authorised by the
Educational Agency.

Form I-A

Application for the Opening of A High School

[Vide rule 5(1)]

1. (a) Name of place where the new school is proposed to be opened

(b)

Name of the proposed school.

2. Revenue District, Taluk and Post Office.

3. (i) Details of the educational agency which proposes to open the High School.

(ii)

Is the educational agency, a registered body ? If so, the details should be furnished.

4. Standards proposed to be opened (new or upgrading, details may be furnished).

5. Population of the villages within eight kilometres radius.

6. Population of children in the school-age group 11-17 or 14-17 in the villages within eight kilometres radius.
(Particulars in respect of boys and girls should be furnished separately).

7. Number of Primary and Middle Schools functioning within eight kilometres radius with their standard-wise strength.

8. Details of High Schools within the distance of eight kilometres, together with their standard-wise strength.

9. Whether there is any natural barrier between the proposed school and the existing schools.

10. (a) Name of the Pre-Primary/Primary/Middle/High Schools in the locality.

(b)

Distance of such schools from the proposed school.

(c)

Particulars of strength, attendance (roll and attendance) of such schools (standard wise particulars should be furnished).

11. Number of pupils expected to join in each of the standards of the proposed school.

12. Whether the educational agency is prepared to create -

(a)

endowments as required in rule 9(2)(c)(i);

(b)

cash reserve as required in rule 9(2)(c)(ii).

13. Details of the accommodation, playground area, furniture, etc. proposed to be provided for the school.

Place:Date:

Signature of the person duly authorised by the
Educational Agency.

Form I-B

[Vide rule 5(1)]

Application For Upgrading Of High School Into Higher Secondary School

1. Name of the School

2. Whether aided/Mission/Local Body or Government.

3. Name of the Corporation, Municipality or Panchayat Union in which the school is located.

(a)

Name of the Educational District.

(b)

Name of the taluk and post office.

4. Names of Higher Secondary Schools already upgraded in that Corporation/Municipality or Panchayat Union Area.

5. List of Higher Secondary Schools within a radius of eight Kms. and their strength in the first year & distance from proposed school.

6. Total strength of the proposed school.

7. Strength in X Standard in the School seeking for upgrading medium-wise.
8. Whether the management is willing to create endowment of Rs. 25,000 as stipulated by Government in respect of Aided Schools. The opinion of the Headmaster and Parent Teachers Association may be obtained about the public contribution of Rs. 25,000.
9. Facilities available in the proposed school -
 - (a) Accommodation with a rough sketch, plan drawn on the plain paper.
 - (b) Laboratory (whether the Laboratory is well equipped should be noted).
 - (c) Library (No. of books to be noted).
 - (d) Play Ground (Area to be noted in acres).
10. Is the locality predominantly populated by Backward Classes, Scheduled Castes or Tribes ?
11. If selected will the school take both academic and vocational courses ?
12. Other Special reasons, if any.
13. Signature of the Correspondent.
14. Recommendation of the Inspecting Officer.
15. Recommendation of the Chief Educational Officer.

Place:Date:

Signature of the person duly authorised by the
Educational Agency.

Form II

Statement of Particulars In Respect of Existing Schools

[Vide rule 5(5)]

1. (a) Name of the centre (in Block letters) where the Primary/Pre-Primary/Middle/ High School/Higher Secondary School.
 - (b) Name of the school.
 - (c) The medium of instruction.
2. Revenue district, Taluk, Post Office.
3. (a) Name of the educational agency managing the school;
 - (b) Is the educational agency a registered body, if so, the details should be furnished.
4. Whether the centre, where the school is situated lies in -
 - (a) Taluk Headquarters Town (or)
 - (b) Municipality /township (or)
 - (c) Panchayat Union area (or)
 - (d) Rural area not coming under any of the above categories.
5. Details of the standards now functioning.
6. (i) Standard-wise strength and average attendance;
 - (ii) Reference number and date of orders in which recognition has been accorded to each standard. Whether the recognition is permanent or temporary. If temporary, the details of the duration should be furnished.
7. Details regarding the accommodation provided for the school - (a) A rough sketch showing the accommodation for class room, etc., duly marked should be enclosed.

(b)

Whether the building is pucca or thatched or tiled one.

(c)

Owned or rented or rent-free.

(d)

Extent of area available for each standard. Sanitary facilities -

8. Whether separate latrines and urinals are provided for teachers and pupils (boys and girls) separately.

Playground -

9.

(1)

Owned/leased

(2)

Extent

(3)

Condition

Garden -

10.

(1)

Extent

(2)

Condition

Equipment -

11. Details regarding availability of -

(1)

Furniture

(2)

Teaching aids, maps, charts, etc.

(3)

Library

(4)

Laboratory

(5)

Miscellaneous

12. Sources of income, including the income from endowment.

13. Name of the Secretary.

14. Particulars of the staff (teaching and non-teaching)

Sl. No.

Name of the teachers of other persons

Qualifications

Pay

Remarks

Designation

General

Provisional

Date of birth

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Place:Date:

Signature of the person duly authorised by the
Educational Agency.

Form III

Application Form For The Approval Of Change In The Constitution Of A Private School

[Vide rule 7(2)]

(1)

The details of constitution.

(2)

The details of constitution proposed to be revised or modified.

(3)

The reasons for such revision or modification.

(4)

The date from which the original constitution is in existence.

(5)

The date from which the changes in constitution have to be given effect to.

(6)

Whether a copy of the resolution of the educational agency for the change is enclosed.

Place:Date:

Signature of the person duly authorised by the
Educational Agency.

Form IV

Application For Approval of The Change of The Educational Agency

[Vide rule 7(3)]

(1)

Name of the school (with full address).

(2)

The range of the Deputy Inspector of Schools/District Educational Officer.

(3)

Particulars regarding the recognition and grant sanctioned to the school.

(4)

Name of the educational agency which maintains the school.

(5)

Name of the educational agency to which the school is proposed to be transferred.

(6)

Whether a resolution of the new educational agency agreeing for the transfer of the school is enclosed.

(7)

Reasons for the transfer.

(8)

Whether the transferee is agreeable to comply with the provisions of the Tamil Nadu Recognised Private Schools (Regulation) Act, 1973 (Tamil Nadu Act 29 of 1974) and the rules made thereunder.

(9)

Whether the transferee is agreeable to run the school with the present teachers and other persons employed in the school on the same conditions of service.

(10)

Details of non-payment of salary, if any, to the teachers or other persons employed in the school.

(11)

Whether any order issued, by the Education Department are pending disposal by the transferor.

(12)

If the building in which the school is situated is owned by the transferor, the arrangement made for locating the school by the new educational agency.

(13)

Was any disciplinary action taken against the new agency or any member of the school committee by the Education Department, if so, the details thereof.

(14)

(i)

Date of application.

(ii)

Date of transfer if it is a case falling under sub-section (c) of section 8 of the Act.

Signature of the person duly authorised by the Educational Agency transferring the management.

Signature of the person duly authorised by the Educational agency to whom the management is transferred.

Declaration To Be Furnished By The Transferor

I,....., acting for and on behalf of the educational agency hitherto recognised as an approved educational agency of the school do hereby declare that I have handed over the school together with building, equipments, records, etc., to (Transferee) the new educational agency. I also declare that all our rights over the school have ceased from....

Place:

Signature of the person duly

Date:

authorised by the educational agency transferring the School.

Declaration To Be Furnished By The Transferee

I,....., acting for and on behalf of educational agency do hereby declare that we have taken up the school from educational agency. We bind ourselves to discharge the legal claims and liabilities against the previous educational agency. We also declare that we shall comply with the provisions of the Tamil Nadu Recognised Private Schools (Regulation) Act, 1973 (Tamil Nadu Act 29 of 1974) and the rule made thereunder.

Signature of the Transferee.

Form V

Statement of Particulars to be Furnished by The Minority Schools

(Vide rule 8)

1. (i) Name of the centre where the minority school is situated,

(ii)

Revenue district, Taluk, Town or Village.

2. Name of school (in Block Letters) and postal address.

3. The medium of instruction.

4. The date of opening of the school.

5. Details of standards and sections now functioning.

6. Standard-wise strength and attendance.

7. (a) Name of the educational agency of the School.

(b)

Whether educational agency is a religious or linguistic minority.

(c)

Whether the educational agency is a registered body, if so, the details should be furnished.

8. The minority to be served by the educational agency.

9. Details of accommodation in the school (a rough sketch should be enclosed).

10. Details regarding the play ground, sanitary facilities, garden, furniture, equipment, etc.

11. Particulars regarding the staff (names of teachers and other persons, qualifications, age, salary, etc.).

12. Population of the centre and also the contiguous places from where pupils might seek admission (particular of men and women should be furnished separately).

13. Number of school-age children in the centre -

(i)

Age group 6-11 years,:

Boys

Girls

Total

(ii)

Age group 11-14 years,:

Boys

Girls

Total

(iii)

Age group 14-17 years,:

Boys

Girls

Total

14. Number of school-age children in the centre [out of the figures furnished in column (13)] who will seek admission in the school.

15. (a) Whether the educational agency has created endowment as required in rule 9(2)(c)(i) or proposes to create endowment and, if so, the details may be furnished.

(b)

Whether the educational agency has deposited or is prepared to deposit one month's salary of the staff as required in rule 9(c) (ii).

16. (a) The name of other Pre-primary/Primary/Middle/High Schools in the locality.

(b)

Distance of such schools from the minority school.

(c)

Particulars of strength and attendance of such schools (Standard-wise particulars should be furnished.)

17. Whether the school has any other sources of income and, if so, the details may be furnished.

Place:Date:

Signature of the person dulyauthorised by the educational agency

Form VI

Application For Recognition Of Schools

[Vide rule 9(1)]

1. Name of the school With full address.

2. Date of opening of the school. (Reference number and date of orders of the competent authority permitting the opening of the school to be furnished). In case of minority schools and other schools existing on the date of commencement of the Act, the reference number and date of submission of the statement should be indicated.

3. Name of the educational agency managing the school.

4. Name of the Secretary.

5. Standards for which recognition is sought for.

6. (a) Standard-wise strength and attendance.

(b)

Whether all the standards are having economic strength.

(c)

List of teaching and non-teaching staff employed in the school with details of qualifications, designations, etc., to be furnished.

(d)

Whether the teaching and non-teaching staff are qualified ?

7. (a) Details of accommodation and sanitation available should be enclosed.

(b)

Whether owned or rented or rent free.

(c)

Whether adequate and suitable.

8. (a) Details of furniture, appliances and apparatus,

(b)

Whether adequate and suitable.

9. (a) Whether a library is provided.

(b)

Whether it is adequate.

10. Whether registers are maintained in the prescribed forms.

11. Whether arrangements have been made for the compulsory medical inspection of the pupils.

12. Playground -

(i)

Area available (in acres).

(ii)

Owned or leased.

(iii)

Whether adequate and fit for use.

13. (i) Whether the school has created, -

(a)

endowment as required in rule 9(2)(c)(i).

(b)

cash reserve as required in rule 9(2)(c)(ii).

(ii)

Property, full details" regarding extent of the property, value of the property, etc., should be furnished.

(iii)

If the endowment is in the shape of cash, full details of the amount and mode of investment should be furnished.

(iv)

Whether the endowment is unencumbered and whether it stands absolutely in the name of school without any reversionary rights.

(v)

Net annual income derived from the endowment.

(vi)

Whether the original deed of property has been verified by the Government Pleader and certified that the deed conveys absolute rights to the school without any reversionary right to the donor and that it is unencumbered.

(vii)

Whether the original cash investment certificates have been verified by the District Educational Officer.

(viii)

Whether attested copy of the Government Pleader opinion, income certificate, encumbrance certificate in respect of the property endowed to the school are enclosed.

(ix)

Details of balance endowment to be created, if any.

14. Whether the educational agency is agreeable to abide by the conditions for recognition in rule 9 and the provisions of the Tamil Nadu recognised Private Schools (Regulation) Act, 1973 (Tamil Nadu Act 29 of 1974) and the rules made thereunder.

Declaration

On behalf of the educational agency of the school, I hereby declare that all the conditions specified in the rules and the departmental orders have been fulfilled. I also declare that we shall abide by the conditions for recognition in rule 9 and the provisions of the Tamil Nadu Recognised Private Schools (Regulation) Act, 1973 (Tamil Nadu Act 29 of 1974) and the rules made thereunder.

Place:Date:

Signature of the person duly authorised by the educational agency

Form VII-A

(Vide rule 15)

Form of Agreement To Be Executed By A School Committee of A Private School In Respect of Permanent Teachers
Agreement Made this Day of two thousand between the School Committee of school of the one part and(Teacher) of the other part.

Whereas the School Committee has agreed to engage the said Thiru/Thirumathi/Selvi to serve in the school, in the capacity of a teacher and on the pay and allowances hereinafter mentioned.

Now these presents witness and the parties hereto do hereby agree as follows: -

1. That the School Committee shall employ the said teacher and the said teacher shall serve as a teacher in the school at from the date of his/her taking charge of such appointment until such employment shall be determined as hereinafter provided.

2. That the said teacher shall be on probation for a period of one year from the date of taking charge of his/her appointment. The School Committees may, however, be extend it to a further period not exceeding one year or two years, as the case may be for reasons to be recorded in writing.

If no order, extending the probation are passed in writing within six months after the period of probation, the said person shall be deemed to have completed his/her probation.

Termination of the probation shall be done only, with the previous permission of the competent authority specified in rule 17.

3. (a) That the said teacher shall employ himself/herself honestly, efficiently and diligently under the orders and instructions of the Headmaster or School Committee of the said school.

(b)

If the employee is a Headmaster/Headmistress he/she shall in that capacity be responsible for the internal management of the school and the academic work of the school and shall exercise such powers as may be necessary for the due discharge of his/her duties.

4. That the said teacher shall not normally or on any pretence absent himself/herself from his/her duties without first having obtained the permission of the Headmaster and if he/she is a Headmaster/Headmistress of the School Committee. In case of sickness or other inevitable causes, he/she shall forward a proper medical certificate or communication explaining the extraordinary circumstances to the Headmaster, or if the said person is a Headmaster/Headmistress, he/she shall send such communication to the School Committee.

5. That the said teacher shall devote his/her whole time to the duties of the said employment and will not on his/her own account or otherwise either directly or indirectly carry on or be concerned in any trade, business or canvassing work, private tuition or the like, of a remunerative kind without the specific written sanction of the School Committee.

6. That the said teacher and the School Committee shall conform to all the provisions of the Tamil Nadu Recognised Private Schools (Regulation) Act, 1973 (Tamil Nadu Act 29 of 1974) and the Tamil Nadu Recognised Private Schools (Regulation) Rules, 1974.

7. That the School Committee shall not dismiss, remove or reduce in rank or terminate the services of the said teacher without informing him/her in writing on the grounds on which they intend to take action and shall adopt the following procedure before taking any final decision regarding the punishment to be imposed.

(a)

The memorandum of charge shall be communicated to him/her in writing giving him/her reasonable time to send his/her explanation to the School Committee.

(b)

After considering his/her explanation, the School Committee shall communicate to him/her findings and, if so desired by the said teacher, conduct a personal hearing or enquiry, wherein he/she shall be given the opportunity to examine or cross-examine any or all the witnesses and also produce witnesses.

(c)

After the conduct of the personal hearing or enquiry by the School Committee, the report of such personal hearing or enquiry shall be furnished to the teacher and a notice shall be issued to him/ her setting out the proposed punishment and he/she shall be given a reasonable time to defend himself/herself against the proposed punishment.

(d)

After the receipt of the statement of defence from him/ her and taking into consideration the School Committee shall inform him/her in writing about its final decision.

8. It shall be open to the School Committee, at any time if satisfied on medical evidence that the said teacher is unfit to discharge his/her duties for reasons of ill health, to terminate his/her services on paying him/her three months pay and allowances less any amount which might have been paid to him/her as leave pay,, after the date of his/her last appearance in the school for the regular discharge of his/her duties and subject to a minimum of one month's full pay and allowances.

9. That the said teacher shall be entitled to have his/her service terminated either by giving to the School Committee three months notice thereof in writing or by paying the School Committee three months pay and allowances in lieu of such notice if he/she is a permanent teacher. In case of a teacher who is not permanent, the period of notice shall be two months and the amount payable in lieu thereof shall be two months pay and allowance.

10. That the School Committee may impose major punishment, such as dismissal, removal or reduction in rank or termination of services as mentioned earlier or any of the following minor punishments on the said teacher for any irregularity or breach of the code of conduct on the part of the said teacher.

(i)
Censure, (ii) withholding of increment, with or without cumulative effect, (iii) recovery from pay to the extent necessary of the monetary value equivalent to the amount of increments ordered to be withheld where such an order cannot be given effect to.

Entries shall be made in the service register of the said teacher only in respect of penalties other than censure. Such entries shall be made only after the appeal, if any, preferred by the said teacher is disposed of by the competent appellate authorities specified in the rules.

11. That the said teacher shall be paid a sum of Rs monthly in the scale of with effect from and the other allowances granted by Government, from time to time. Such teacher shall be entitled to increments indicated in the scale.

12. Any permanent teacher whose certificate is suspended as a temporary measure or who is declared unfit to hold the post for a temporary period, shall have a right to claim for reinstatement in service in the school in which he was working prior to his relief on the expiry of the term of his punishment

The School Committee shall reinstate him in the post which he held before such punishment was imposed.

In witness whereof the School Committee and the teacher have here unto set their hand.

Signature of the Secretary of the School Committee.

In the presence of

First Witness

Signature:

Name:

Address:

Occupation:

Second Witness

Signature:

Address:

Occupation:

Signature of the Teacher.

In the presence of -

First Witness

Signature:

Name:

Address:

Occupation:

Second Witness

Signature:

Name:

Address:

Occupation:

Note: - In respect of employees other than teachers, the designation of such employee shall be substituted in the place

of teacher wherever it occurs in the form of agreement.

Form VII-B

(Vide rule 15)

Form of Agreement to be Executed by the School Committee of A Private School In Respect of Temporary Teachers
Agreement made this day of two thousand and between the School Committee of School of
the one part and (Teacher) of the other Part;

Whereas the School Committee has offered to engage the said Thiru/Thirumathi/Selvi..... to serve in the School
in the capacity of a teacher on a purely temporary basis and on the pay and allowances hereinafter mentioned.

And Whereas the Said Thiru/Thirumathi/Selvi has accepted to serve as a teacher.

Now these present witness and the parties hereto do hereby agree as follows: -

1. That the School Committee shall employ the said teacher and the said teacher shall serve as a teacher in the school
at purely on a temporary basis from the date of his/her taking charge of his/her appointment until such
appointment is determined as hereinafter provided.

2. (a) That the said teacher shall employ himself/herself honestly, efficiently and diligently under the orders and
instruction of the Headmaster or the School Committee.

(b)

If the employee is a Headmaster/Headmistress, he/she shall, in that capacity, be responsible for the internal
management of the school and the academic work of the school and shall exercise such powers as may be necessary
for the due discharge of his/her duties.

3. That the said teacher will not normally or on any pretence absent himself/ herself from his/her duties without first
having obtained the permission of the Headmaster, and if he/she is a Headmaster of the School Committee. In case of
sickness or other inevitable causes, he/she shall forward a proper medical certificate or communication explaining the
extraordinary circumstances to the Headmaster. If the said persons is a Headmaster, he/she will send to such
communication to the School Committee.

4. That the said teacher will devote his/her whole time to the duties of the said employment and will not on his/her own
account or otherwise either directly or indirectly carry on or be concerned in any trade, business or canvassing work
private, tuition or the like, of a remunerative kind without the specific written sanction of the School Committee.

5. That the School Committee shall have the right to discharge the said teacher without assigning any reasons at the
end of the specific period for which he/she has been engaged as a temporary teacher or earlier.

6. That the said teacher shall be entitled to relinquish his/her appointment at the end of the specific period for which
he/she been appointed or earlier if he/she so desires.

7. That the said teacher shall be paid a sum of Rs..... monthly as pay and other allowances with effect from the
date of his/her taking charge as such teacher.

In witness whereof, the school committee..... and..... have here unto set their hand.

Signature of the Secretary of the School Committee.

In the presence of

First Witness

Name:

Address:

Occupation:

Second Witness

Signature:

Name:

Address:

Occupation:

Signature of the Teacher.

In the presence of -

First Witness

Signature:

Name:

Address:

Occupation:

Second Witness

Signature:

Name:

Address:

Occupation:

Note. -In respect of employees other than teacher designation of such employees shall be substituted in the place of teacher wherever it occurs in the form of agreement.

Form VII-C

[Vide rule 15 (2) (1-a)]

Form of Agreement to be Executed by the School Committee of A Private School In Respect of Junior Grade Teachers
Agreement made this day of two thousand and between the School Committee of School of the one part and
..... (Junior Grade Teachers) of the other Part:

Whereas, the School Committee has offered to engage the said Thiru/Thirumathi/Selvi to serve in the School
..... as a Junior Grade Teachers on consolidated pay for five years.

And Whereas, the said Thiru/Thirumathi/Selvi has accepted to serve as a Junior Grade Teachers.

Now These Present Witness and the parties hereto do hereby agree as follows: -

1. That the School Committee shall employ the said Junior Grade Teachers and the said Junior Grade Teachers shall serve as a Junior Grade Teachers in the school at on consolidated pay from the date of his/her taking charge of his/her appointment until such appointment is determined as hereinafter provided.
2. (a) That the said Junior Grade Teachers shall employ himself/herself honestly, efficiently and diligently under the orders and instruction of the Headmaster or the School Committee.
3. That the said Junior Grade Teachers will not normally or on any pretence absent himself/herself from his/her duties without first having obtained the permission of the Headmaster. In case of sickness or other inevitable causes, he /she shall forward a proper medical certificate or communication explaining the extraordinary circumstances to the Headmaster.
4. That the said Junior Grade Teachers will devote his/her whole time to the duties of the said employment and will not on his/her own account or otherwise either directly or indirectly carry on or be concerned in any trade, business of canvassing work, private tuition or the like, of a remunerative kind without the specific written sanction of the School Committee.
5. That the said Junior Grade Teacher shall be entitled to time scale of pay after the completion of five years of service on consolidated pay.
6. That the said Junior Grade Teachers shall be paid a sum of Rs. (Rupees only) monthly as consolidated pay with effect from the date of his/her taking charge as such Junior Grade Teachers.

In Witness Where of, the school committee and....have hereunto set their hand.

Signature of the Secretary of the School Committee.

In the presence of -

First Witness -

Signature:

Name:

Address:

Occupation:

Second Witness -

Signature:

Name:

Address:

Occupation:

In the presence of -

First Witness -

Signature:

Name:

Address:

Occupation:

Second Witness -

Signature:

Name:

Address:

Occupation:

Form VIII

[Vide rule 20(1)]

Form of Notice to be Given by the Management to the Competent Authority In Case of Closure of Private School

1. Date of opening of the school.
2. Name of the educational institution.
3. Whether it is located in own building/rented/rent free.
4. Mention the media of instruction in the school.
5. Name of educational district.
6. Names of other recognised schools of similar type functioning within a radius of 5 k.m. from the school under reference.
7. Details of standards now functioning in the school. (Standard-wise strength particulars of boys and girls as on 1st September of the year in which notice is given should also be furnished).
8. Nature of recognition enjoyed by the school. If temporary, period upto which the recognition has been granted and conditions laid down for grant of temporary recognition, etc.
9. Particulars of staff employed as approved by the Department (Teaching and non-teaching should be furnished separately).
10. Whether the constitution of the educational agency provides for the closure of the school. Furnish an extract of the constitution.
11. Reasons for the closure to be given clearly.
12. Alternative arrangements made or proposed to be made for the continuance of instruction of the pupils of the school.
13. Whether a resolution has been passed by the School Committee as per rules supporting the proposal. (A copy of such resolution duly attested should be enclosed in the case of non-minority school).
14. Cash balance in the general fund account on the date of notice.
15. Details of endowments created:
Full details to be given in respect of immovable property and cash endowment.
16. Details of public contribution realised for the benefit of the school from the date of opening of the school

Cash

:

Rs.

Kind

:

Movable:

Immovable: Present value Rs. P.

17. Liabilities, if any, to be discharged by the management. Details to be specified. The arrangements made to settled them to be furnished.

18. Grants other than staff grant received from Government should be furnished in detail -

(i)

Amount of grant.

(ii)

Date of drawal.

(iii)

Purpose for which granted.

(iv)

Authority Number and date of orders sanctioning the grant. (Copy of sanction order to be furnished).

19. Whether the educational agency proposes to run any other educational institution any where else in the State ? If so, the details may be furnished.
20. Flow the endowed property movable/immovable, cash balance in the general fund account is proposed to be used for constitutional purposes.
21. Whether the educational agency is prepared to refund the full amount of grant drawn from Government.
22. Whether the educational agency is willing to transfer to Government unconditionally, the site, buildings, furniture, endowment, staff of the school, in case a Government school is opened to provide alternative arrangement for catering to the educational needs of the locality.
23. Whether any special scheme of scholarship, etc., has been instituted for the benefit of students of the school. Full details of the scheme to be given.
24. Whether there are any orders passed by the department as appellate authority remaining without compliance.
25. Whether there is any case pending in a Court of law concerning the school.
26. Whether any action against the school committee is pending.
27. The date of notice signed by the Secretary of the School Committee/ Correspondent of the school.

Declaration

1.1

agree that the institution will be closed only after obtaining the prior permission of the competent authority and the closure shall take effect from the date of expiry of an academic year, as specified by the competent authority.

2. I agree to make alternative arrangements for the continuance of instructions to the pupils in the course of study for which they have admitted.

3. In case the permission required is refused by the competent authority, I shall continue to run the institution.

4. In the event of closure of the institution with the permission, I shall abide by the orders of the Department with regard to transfer of staff, school properties, settlement of accounts, etc.

Place:

Signature of the applicant, Secretary of the Schoolcommittee/Correspondent of the Minority School

Date:

[Form VIII-A]

[Inserted toy G.O. Ms. No. 1071, Education, dated the 4th June 1988.]

[Vide rule 20(1)]

Form of Notice To Be Given By The Management To The Competent Authority In Cases of Closure of Class/course of Instruction In A Private School

1. Name of the school.
2. The media of instruction in the school.
3. Name of the educational district.
4. Details of standards/sections now functioning in the school. [Standard-wise strength (Boys-Girls) should be furnished.]
5. Details of courses/medium introduced in the school. The dates from which such courses are offered.
6. Details of recognition accorded to each standard. Period upto which recognition accorded should also be noted.
7. Particulars of approved staff employed in the school including non-teaching staff for the class or course of instruction or medium of instruction proposed to be closed.
8. Whether the proposal is for closure of -
 - (a)
Class/classes.
 - (b)
Course of instruction.
9. Reason for such closure.
10. Alternative arrangements made/proposed to be made for the continuance of instructions to the pupils for the class/course of instruction.
11. Whether a resolution has been passed as per rules by the School Committee. (Copy of a resolution duly attested to be enclosed in the case of non-minority school).
12. The date of notice signed by the Secretary of School Committee/Correspondent of the school.

Declaration

1.

I agree that the class/course will be closed only after obtaining the prior approval of the competent authority and the closure shall take effect from the expiry of an academic year.

2.

I agree to make alternative arrangements for the continuance of the pupils in the course for which they have been admitted.

3. In case the permission requested is refused by the competent authority, I shall continue to conduct the class/course of instruction.

4. I shall abide by the conditions/rules that are specified by the Government, from time to time, for the closure of class by course of instruction.

5. If due to the proposals of closure of class/course of instruction, any staff is rendered surplus, their services will not be dispensed with and they will be allowed to continue in service till further orders are received regarding their absorption in needy schools.

Place:

Signature of the applicant

Date:

[Item 5 was substituted by Letter No. 60566/111/94-5, EST, dated the 20th February 1995.]

[Substituted by G. O. Ms. No. 804, Education, Science and Tech., dated the 16th September 1994]

Related AI tags, queries and research notes

Translation